CHAPTER xcix.

An Act to empower the lord mayor aldermen and burgesses of the city of Bristol to execute works to confer further powers upon them with reference to their dock and electricity undertakings to extend the boundaries of the city to enact provisions for the health local government and improvement of the city and for other purposes. [4th August 1926.]

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WHEREAS the city and county of Bristol (hereinafter referred to as "the existing city") is a municipal borough subject to the Acts relating to municipal corporations and under the government of the lord mayor aldermen and burgesses (hereinafter referred to as "the Corporation") and the Corporation acting by the council are the urban sanitary authority for the district of the said borough:

And whereas the Corporation are the owners of the docks in the existing city known respectively as the City Docks the Avonmouth Docks and the Portishead Docks:

And whereas it is expedient that the Corporation should be empowered for the purposes of their dock undertaking to construct the works in connection with that undertaking authorised by this Act and that the further powers with reference to the said undertaking which are contained in this Act should be conferred upon the Corporation:

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And whereas the Corporation carry on an electricity undertaking under the powers of the Bristol Electric Lighting Order 1883 (as amended by subsequent Acts) in an area of supply which consists of the existing city and certain adjoining areas and are also by virtue of the Bristol Corporation Act 1904 the undertakers under the Barton Regis Electric Lighting Order 1902 for an area of supply outside the existing city which consists of parts of the rural districts of Thornbury and Chipping Sodbury in the county of Gloucester:

And whereas for the purpose of enabling the Corporation to meet the prospective demands for the supply of electricity it is expedient that they should be empowered to use for the construction of a generating station or generating stations certain lands in the urban district of Portishead in the county of Somerset and to execute certain works in that urban district in connection with the said electricity undertaking and that the other powers contained in this Act with reference to that undertaking should be conferred upon the Corporation:

And whereas it is expedient that subject to certain modifications the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 should be applied to the electricity undertaking of the Corporation in substitution for the corresponding provisions of the said Bristol Electric Lighting Order 1883:

And whereas the existing city is a county of itself and has a separate court of quarter sessions commission of the peace police force sheriff and coroner and has an ancient court of record (commonly known as "the Tolzey Court") and a court of Pied Poudré:

And whereas the existing city is a county borough under the Local Government Act 1888:

And whereas it is expedient that the existing city should be extended so as to include parts of the parish of Henbury in the rural district of Thornbury in the county of Gloucester and of the urban district of Portishead in the county of Somerset:

And whereas it is expedient that the area within which the Corporation are authorised to supply electricity under the said Bristol Electric Lighting Order 1883 should be extended so as to include the parts of the said parish of Henbury and of the said urban district of

Portishead which are by this Act added to the existing city and the said area of supply under the Barton Regis Electric Lighting Order 1902 and that the last-mentioned Order should be repealed:

And whereas it is expedient that further powers should be conferred upon the Corporation with respect to streets and buildings and that further and better provisions should be made with regard to the health local government and improvement of the existing city:

And whereas it is expedient that the other provisions contained in this Act should be made:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

	£
For the execution of the works by this Act authorised - - - -	579,280
For the acquisition of lands and easements therefor and for other purposes -	4,050

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed:

And whereas plans and sections showing the lines situations and levels of the works authorised by this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act have been deposited with the respective clerks of the peace for the counties of Gloucester and Somerset and are in this Act referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in

A.D. 1926. this present Parliament assembled and by the authority of the same as follows (that is to say):—

Part I.

Preliminary.

Short and collective titles.

1. This Act may be cited as the Bristol Corporation Act 1926 and (*a*) Part II. (Dock undertaking) and Part VI. (Licensing of craft) of this Act and so much of Part I. (Preliminary) Part IV. (General provisions as to works) Part V. (Lands) Part XVI (Financial) and Part XVII. (Miscellaneous) thereof as relates to the powers conferred by the said Parts II. and VI. and (*b*) the Bristol Dock Acts 1848 to 1922 may be cited together as the Bristol Dock Acts 1848 to 1926.

Division of Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.
Part II.—Dock undertaking.
Part III.—Electricity.
Part IV.—General provisions as to works.
Part V.—Lands.
Part VI.—Licensing of craft.
Part VII.—Streets buildings and drains.
Part VIII.—Sanitary.
Part IX.—Human food.
Part X.—Slaughter-houses.
Part XI.—Infectious disease.
Part XII.—Street trading.
Part XIII.—Hackney carriages and police.
Part XIV.—Extension of city boundaries.
Part XV.—Rating.
Part XVI.—Financial.
Part XVII.—Miscellaneous.

Incorporation of Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are

incorporated with and form part of this Act (that is to say) :— A.D. 1926.

(1) The Lands Clauses Acts with the following exception and modification—

(*a*) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(*b*) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section;

(2) Sections 11 to 16 and 18 to 24 of the Railways Clauses Consolidation Act 1845 and the provisions of that Act with respect to the temporary occupation of lands near the railway during the construction thereof and with respect to works for the accommodation of lands adjoining the railway and with respect to mines lying under or near to the railway;

(3) The Harbours Docks and Piers Clauses Act 1847; and

(4) The provisions of the Commissioners Clauses Act 1847 relating to mortgages (except section 84);

Provided that—

(i) sections 16 to 19 of the Harbours Docks and Piers Clauses Act 1847 shall not be in force unless the Board of Trade so require;

(ii) the following expressions used in the said Harbours Docks and Piers Clauses Act 1847 shall have the following respective meanings (that is to say) :—

The expressions "packet boat" and "Post Office packet" mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal

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packets as defined by the Post Office Act 1908 and the expression "Post Office bag of letters" means a mail bag as defined by the same Act;

(iii) nothing in the said Harbours Docks and Piers Clauses Act 1847 or in this Act shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers live stock or goods for hire.

Interpretation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

"The existing city" means the city and county of Bristol as existing immediately before the commencement of Part XIV. (Extension of city boundaries) of this Act;

"The city" until the date of commencement of the said Part XIV. means the existing city and as from that date means the existing city as extended by this Act;

"The council" means the council of the city;

"The Corporation" means the lord mayor aldermen and burgesses of the city acting by the council;

"The lord mayor" "the town clerk" "the treasurer" "the surveyor" "the medical officer" and "the sanitary inspector" mean respectively the lord mayor the town clerk the treasurer the surveyor the medical officer of health and any sanitary inspector of the city and respectively include any person duly authorised to discharge temporarily the duties of those officers respectively;

"The dock undertaking" means and includes the undertaking carried on by the Corporation upon or in connection with the docks for the time being of the Corporation and the real and personal property railways piers works

and appliances acquired appropriated or provided by them for the purposes thereof including any such property as aforesaid which is held by a grantee in fee farm or is leased to or occupied by lessees or tenants of the Corporation;

"The dock revenue" includes all dues rents and moneys (other than borrowed moneys or any other moneys which ought to be carried to the account of capital) payable to the Corporation in any way on account of the dock undertaking;

"The port" means the port of Bristol;

"Craft" means any boat barge lighter or trow;

"Vessel" includes any ship or craft;

"The dock area" means the Avonmouth Docks the City Docks and the Portishead Docks of the Corporation the River Avon from its junction with the River Severn to Hanham Locks and the approaches to the said Avonmouth and Portishead docks respectively from the River Severn;

"The harbour master" means the several officers of the Corporation having the powers of a harbour master under the Harbours Docks and Piers Clauses Act 1847;

"The Corporation's Electric Lighting Order" means the Bristol Electric Lighting Order 1883 as extended or amended by this or any previous Act of the Corporation;

"The Barton Regis Order" means the Barton Regis Electric Lighting Order 1902 as amended by the Bristol Corporation Act 1904 and the Bristol Corporation Act 1918;

"The electricity undertaking" means the electricity undertaking carried on by the Corporation under the Corporation's Electric Lighting Order and the Barton Regis Order;

"The electricity revenue" means all moneys (other than borrowed moneys or any other moneys which ought to be carried to the account of capital) payable to the Corporation in any way on account of the electricity undertaking;

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"The electricity limits" means the limits within which the Corporation are or may for the time being be authorised to supply electricity;

"The generating station" means any generating station or stations erected by the Corporation on the lands described in the First Schedule to this Act or on any part of those lands;

"The arbitrator" means the arbitrator to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Lands Clauses Acts;

"The added area" means the areas by this Act added to the existing city;

"The local courts" means the Tolzey Court and the court of Pied Poudré of the city;

"The said counties" means the counties of Gloucester and Somerset;

"The county councils" means the county councils of the said counties respectively;

"The standing joint committees" means the standing joint committees of the said counties respectively;

"The Portishead Council" and "the Thornbury Council" mean respectively the urban district council of Portishead and the rural district council of Thornbury;

"The Henbury Council" means the parish council of the parish of Henbury;

"The three councils" means the Portishead Council the Thornbury Council and the Henbury Council;

"The Bristol Union" "the Thornbury Union" and "the Long Ashton Union" mean respectively the poor law unions of Bristol Thornbury and Long Ashton;

"The Thornbury guardians" and "the Long Ashton guardians" mean respectively the boards of guardians of the Thornbury Union and the Long Ashton Union;

"The Bristol guardians" means the board of guardians of the parish of Bristol;

"The Municipal Corporations Acts" means the Municipal Corporations Act 1882 and any Acts amending the same;

"The city plan" means the plan of the city signed in triplicate by Sir Thomas Robinson the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which copies are to be deposited as mentioned in subsection (1) of the section of this Act of which the marginal note is "Deposit of city plan";

"Infectious disease" means any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the city;

"Child" means a person under the age of sixteen years;

"Sunday school" means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;

"Daily penalty" means a penalty for each day on which an offence is continued by a person after conviction thereof;

"The Lands Clauses Acts" means the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919;

"Hackney carriage" means a hackney carriage as defined by the Town Police Clauses Act 1847 and does not include an omnibus as defined by the Town Police Clauses Act 1889;

"The overseers" means the overseers of the poor of the parish of Bristol;

"The borough fund" "the district fund" "the borough rate" and "the general district rate" mean respectively the borough fund the district fund the borough rate and the general district rate of the city;

"Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration

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money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

"Revenues of the Corporation" includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

(3) For the purposes of this Act in enactments incorporated with this Act "the company" or "the undertakers" means the Corporation;

In the Railways Clauses Consolidation Act 1845 the expressions "the railway" "the centre of the railway" and "the boundaries of the railway" mean respectively the several works by this Act authorised and the centre lines and the boundaries of those works respectively;

In the Commissioners Clauses Act 1847 "the commissioners" means the Corporation and "the clerk to the commissioners" means the town clerk.

Commencement of Act.

5. This Act shall come into operation for the following purposes on the following dates respectively (that is to say):—

(*a*) As regards Part XIV. (Extension of city boundaries) on the first day of October one thousand nine hundred and twenty-six (which date is in the said Part referred to as "the commencement of this Part of this Act") except for the purpose of the preparation of lists of electors or the alteration or re-arrangement of any register of local government electors for which purpose the said Part shall come into operation on the passing of this Act Provided that for any purpose connected with the distribution and application of the moneys payable out of the local taxation account or by the Postmaster-General in pursuance

of the Local Government Act 1888 and the Local Taxation (Customs and Excise) Act 1890 and of the Roads Act 1920 (as amended by any subsequent Act and as affected by any Order in Council) the existing city shall be deemed not to have been altered and the added area shall be deemed to continue part of the county of Gloucester or of the county of Somerset (as the case may be) until the first day of April one thousand nine hundred and twenty-seven;

(*b*) As regards all other Parts of this Act on its passing.

Part II.

Dock Undertaking.

Power to make works in connection with dock undertaking.

6. Subject to the provisions of this Act the Corporation may in the city make and maintain in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections the following works in connection with the dock undertaking (that is to say):—

Work No. 1 A culvert commencing in the Mere Bank Rhine at the north-western boundary of the Great Western Railway (Avonmouth and Filton Branch) where the said railway crosses the said Rhine and terminating in the said Rhine at a point one hundred and fifty yards or thereabouts north-westward of the said north-western boundary:

Work No. 2 A graving dock on the north-western side of the Royal Edward Dock Avonmouth:

Provided that the said culvert (Work No. 1) shall have an internal diameter of not less than four feet three inches.

Provisions as to culverting of Mere Bank Rhine.

7.—(1) Subject to the provisions of this Act the Corporation may make and maintain permanently or temporarily all such retaining walls embankments drains pipes conduits tidal flaps sluices valves weirs channels excavations and other works apparatus appliances and conveniences as they may deem necessary or convenient for the purposes of or in connection with the construction

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of the culvert (Work No. 1) authorised by this Part of this Act and for the purposes of the construction maintenance and repair of the said culvert the Corporation may stop up or divert temporarily the water flowing in the Mere Bank Rhine.

(2) The said culvert (Work No. 1) shall be used for the conveyance of water flowing in the said Mere Bank Rhine and the Corporation may execute and do all such works and things as may be necessary for preventing such water from flowing elsewhere than through the said culvert.

Powers with reference to graving dock.

8. The Corporation may make and recover such reasonable charges as they may think fit for the use of the graving dock (Work No. 2) authorised by this Part of this Act and may lease let or grant the exclusive use of the said graving dock for such period or periods and upon and subject to such terms and conditions as they may think fit.

Dock works to form part of dock undertaking.

9. The works authorised by this Part of this Act and the subsidiary works connected therewith respectively and all lands and easements acquired or appropriated by the Corporation for the purposes thereof shall form part of the dock undertaking and subject to the provisions of this Act the Corporation shall have and may exercise and enjoy in over upon and in relation thereto the same rights powers and privileges and shall be subject to the same duties obligations and liabilities in relation to the said works as if the same had been authorised by and constructed under the powers of the Bristol Docks and Railways Act 1901.

Power to provide and maintain canteens &c.

10.—(1) The Corporation may build provide (by purchase or otherwise) and maintain as part of the dock undertaking canteens refreshment rooms and other like accommodation and may furnish stock equip and manage such canteens and refreshment rooms and may carry on the business thereof and may employ officers managers and servants therein or in connection therewith and may apply the dock revenue and may acquire and hold lands for those purposes Provided that no canteen refreshment room or other like accommodation shall be built by the Corporation within the Customs wall or fence bounding any docks at which the quays

are legal quays or sufferance wharfs without the consent of the Commissioners of Customs and Excise.

(2) The Corporation may let on lease or otherwise any such canteen refreshment room or other like accommodation so built or provided by them as aforesaid.

Purchase of lands by agreement for dock undertaking.

11. The Corporation may for the purposes of the dock undertaking purchase and take (by agreement but not otherwise) and hold in addition to any lands now vested in them or which they are authorised at the date of the passing of this Act to acquire any lands and hereditaments not exceeding in the whole four hundred acres or any easement right or privilege therein thereunder thereover or thereupon which they may require for the purposes of that undertaking but nothing in this Act shall exempt the Corporation from any indictment action or other proceeding for nuisance in the event of any nuisance being caused by them upon any land so acquired.

Removal of stranded sunk or abandoned vessels.

12.—(1) Whenever any vessel is sunk stranded or abandoned in the port the Corporation may cause that vessel to be raised or removed or to be blown up or otherwise destroyed so as to clear therefrom the port.

(2) The Corporation may cause any such vessel and the furniture tackle and apparel thereof or any part thereof which shall be raised or saved and also all or any part of the cargo goods chattels and effects which may be raised or saved from any such vessel to be sold in such manner as they think fit (subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the Merchant Shipping Act 1894) and out of the proceeds of sale may reimburse themselves for the expense incurred by them under this section and also for any expenses incurred by them in marking buoying watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of sale in trust for the persons entitled thereto Provided always that the Corporation shall before selling any such cargo goods chattels or effects as aforesaid pay all duties which may be payable to His Majesty in respect of the cargo goods chattels or effects to be sold and they may retain the amount of the

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duties so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of sale are insufficient to reimburse the Corporation for the aforesaid expenses and duties the Corporation may recover the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the person who at the time of the sinking stranding or abandonment of the vessel was the registered owner of the vessel or from the executors or administrators of such owner as a debt either summarily as a civil debt or in any court of competent jurisdiction.

(4) If on demand being made under this section for payment of any deficiency the person on whom the demand is made is dissatisfied with the amount demanded he may within fourteen days after the receipt of the demand appeal to the Board of Trade who shall appoint an arbitrator to determine and award whether any and (if so) what sum is payable in respect of the deficiency and the award of the arbitrator appointed by the Board of Trade that no sum is payable or as to the sum payable (as the case may be) shall be conclusive and binding on both parties The costs of the appeal and the award shall be in the absolute discretion of the arbitrator and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party in the same manner as the sum payable in respect of the deficiency is recoverable under subsection (3) of this section.

(5) The powers of the Corporation under subsection (1) of this section shall not be exercised in respect of a vessel if the registered owner thereof within twenty-four hours after the sinking stranding or abandonment of the vessel takes such steps as may in the opinion of the harbour master be necessary for the raising or removal thereof and does all things necessary to raise and remove the vessel as speedily as possible to the satisfaction of the harbour master.

(6) The powers conferred by this section on the Corporation shall be in addition to and not in derogation of any other powers exerciseable by them for or with respect to the removal of wrecks.

(7) Except for the purpose of removing any obstruction to the port nothing in this section shall entitle the Corporation to remove any wreck (as defined by section 510 of the Merchant Shipping Act 1894) to the prejudice or in derogation of the rights with respect to such wreck of the Receiver of Wreck under the provisions of Part IX. of the said Merchant Shipping Act and if the Corporation shall for any such purpose as aforesaid remove any such wreck they shall (without prejudice to the rights of sale conferred upon them by the foregoing provisions of this section) hold and dispose of the same or any such surplus of the proceeds of sale thereof as is referred to in subsection (2) of this section in accordance with such directions (if any) as may be given to them by the said receiver.

Further power to deal with unserviceable vessels.

13. In addition to the powers conferred on the Corporation and the harbour master by section 57 of the Harbours Docks and Piers Clauses Act 1847 and to the powers conferred on the Corporation by the Merchant Shipping Act 1894 the Corporation may on giving notice of their intention by advertisement inserted three times in each of two local newspapers sell break up or otherwise dispose of or cause to be sold broken up or otherwise disposed of any vessel laid by or neglected as unserviceable in the port and may receive the moneys (if any) arising therefrom and may retain out of such moneys any expenses incurred by them in respect or on account of such vessel and also any charges or expenses incurred by the Corporation or the harbour master under section 57 of the Harbours Docks and Piers Clauses Act 1847 or section 530 of the Merchant Shipping Act 1894 rendering the balance if any to the owner and if there be no such moneys or if any such moneys be insufficient to cover such expenses or charges the Corporation may recover such expenses or charges or the unsatisfied balance thereof from the owner by proceeding or action in any court of summary or competent jurisdiction.

Application of dock revenue.

14.—(1) Notwithstanding any other enactment the Corporation shall as from the date of the passing of this Act apply the dock revenue in manner following (that is to say):—

First In payment of the costs charges and expenses of and incidental to the collecting and recovering of the dock revenue;

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Secondly In payment of the working and establishment expenses and cost of maintenance of the dock undertaking and of executing the powers of the several Acts relating thereto (including this Act and all subsequent Acts) properly chargeable to revenue;

Thirdly In payment of the interest on moneys borrowed by the Corporation under the Acts relating to the city docks prior to the Bristol Dock Act 1881;

Fourthly In payment of the interest or dividend on the stock issued under the powers of the said Bristol Dock Act 1881 and the said Bristol Dock Act 1884;

Fifthly In payment of the interest or dividend on moneys borrowed or stock issued for the purposes of the dock undertaking under the powers of any Act subsequent to the said Bristol Dock Act 1884;

Sixthly In providing the requisite instalments or sinking funds for the repayment or redemption of moneys borrowed or stock issued for the purposes of the dock undertaking;

Seventhly In providing a contingency fund if they think fit by setting aside such sums (not exceeding in any year the sum of twenty thousand pounds) as they may from time to time determine and investing such sums and the dividends or interest on such investments and accumulating the same until the fund so formed shall amount to two hundred and fifty thousand pounds which fund shall be applicable from time to time in or towards—

(*a*) answering any deficiency at any time happening in the dock revenue; or

(*b*) meeting any extraordinary claim or demand at any time arising against the Corporation with respect to the dock undertaking; or

(*c*) defraying the cost of constructing extending or improving works or conveniences for the purposes of the dock undertaking; or

(*d*) defraying the cost of the renewal or replacement of any building or work or of any property of any description comprised in the dock undertaking; or

(*e*) making good any loss sustained by the Corporation by or in consequence of the loss or destruction (by any means whatsoever) of or injury to any building or work or any other property of any description comprised in the dock undertaking; or

(*f*) providing a fund for working capital for the purposes of the dock undertaking;

Eighthly In repaying to the borough fund any moneys which may have been expended thereout to meet any deficiency in the dock revenue.

The surplus (if any) in any year shall be paid by the Corporation to the credit of the borough fund.

(2) The Corporation may resort to the contingency fund authorised by this section notwithstanding that such fund may not at the time have reached or may have been reduced below the maximum amount prescribed by this section with reference thereto and if the said fund be at any time reduced it may thereafter be again restored to such maximum amount and so on as often as the reduction happens.

As to financial year for purposes of dock undertaking.

15. Notwithstanding anything contained in any enactment relating to the dock undertaking the accounts of the Corporation with respect to that undertaking shall be made up to the thirty-first day of March in each year and the period of twelve months ending on the thirty-first day of March shall for all purposes be deemed to be the financial year in relation to the dock undertaking.

Part III.

Electricity.

Power to use lands for erection of generating station.

16.—(1) The Corporation may use the lands described in the First Schedule to this Act or any part of such lands for the construction laying down altering renewing maintaining enlarging working and use of stations and works for the generation storage transformation distribution conversion and supply of electricity and

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of buildings steam and other engines dynamos batteries machinery apparatus railways sidings works and appliances in connection with or for the purposes of any such station or works Provided that nothing in this section shall relieve the Corporation from the necessity for obtaining the consent of the Electricity Commissioners under section 11 of the Electricity (Supply) Act 1919 as amended by section 13 of the Electricity (Supply) Act 1922 to the establishment of any generating station upon the said lands.

(2) For the purposes of section 10 of the Electricity (Supply) Act 1919 this Act shall be deemed to be a special order.

Power to construct works in connection with generating station.

17. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations shown on the deposited plans and according to the levels shown on the deposited sections or may at any time discontinue the following works in connection with the generating station all of which works will commence in the parish and urban district of Portishead in the county of Somerset and terminate in the city (that is to say) :—

Work No. 3 A culvert commencing in the enclosure numbered 58 on the $\frac{1}{2500}$ scale Ordnance map edition of 1915 (Somerset sheet 11–6) and terminating in the River Severn:

Work No. 4 A culvert commencing at the point of commencement of the said culvert (Work No. 3) and terminating in the River Severn:

Work No. 5 A culvert commencing in the said enclosure numbered 58 on the said Ordnance map and terminating in the River Severn:

Work No. 6 A culvert commencing at the point of commencement of the said culvert (Work No. 5) and terminating in the River Severn:

Work No. 7 A culvert or drain commencing in the said enclosure numbered 58 on the said Ordnance map and terminating in the Portishead Dock of the Corporation:

Work No. 8 A gantry or overhead conveyor commencing in the enclosure numbered 78 on the said Ordnance map and terminating on the quayside of the said Portishead Dock;

Provided that notwithstanding anything contained in this Act or shown on the deposited plans and sections the Corporation may construct any part of the said Work No. 8 between the fence of the dock property of the Corporation and the quayside of the said Portishead Dock in such line and at such level as they may think fit and may at any time alter the position of or remove the whole or any part of the said portion.

Period for completion of certain works under this Part of Act.

18. If the culvert or drain (Work No. 7) or the gantry or overhead conveyor (Work No. 8) authorised by this Act is not completed within four years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for making and completing the work not so completed or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Power to take water from River Severn.

19.—(1) The Corporation may by means of the culverts (Works Nos. 3 4 5 and 6) by this Act authorised or any of them abstract water from the River Severn and use for any purpose such quantity of the water so abstracted as they may from time to time think fit.

(2) The Corporation may by means of the said culverts (Works Nos. 3 4 5 and 6) and of the culvert or drain (Work No. 7) by this Act authorised or any of them return into the said River Severn or discharge into the Portishead Dock of the Corporation so much of the water abstracted by them from the said river as they shall not require to use for any purpose at the generating station Provided that no water shall be discharged by means of the said culvert or drain into the said Portishead Dock except with the consent from time to time of the docks committee of the Corporation or otherwise than upon and subject to such terms and conditions as the said committee may in giving any such consent prescribe.

Powers with reference to gantry or overhead conveyor.

20.—(1) The Corporation may use the gantry or overhead conveyor (Work No. 8) by this Act authorised for the conveyance of coal and other goods articles and things into the generating station and the conveyance therefrom of ashes and other refuse or any goods articles or things and for the conveyance to or from the generating station or the site thereof of building and other materials spoil and other matters and things for the purposes of or

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in connection with the erection or equipment of the generating station.

(2) For the purposes of section 81 of the schedule to the Electric Lighting (Clauses) Act 1899 and of section 10 of the Electricity (Supply) Act 1919 the said Work No. 8 shall be deemed to be part of the generating station and for the purposes of the first mentioned section this Act shall be deemed to be a special order.

Power to lay electric lines in or on certain works.

21. The Corporation may place lay maintain renew and use electric lines in or through the culvert or drain (Work No. 7) and in upon or through the gantry or overhead conveyor (Work No. 8) authorised by this Act.

Power to stop up footpath.

22. The Corporation may stop up the footpath in the parish and urban district of Portishead in the county of Somerset extending from Pier Road to South Road and traversing the lands described in the First Schedule to this Act and thereupon all rights of way over the said footpath shall be extinguished and the site and soil of the said footpath (so far as the same is not already the property of the Corporation) shall by virtue of this Act be vested in them Provided that such footpath shall not be stopped up unless the Corporation are owners in possession of all lands on both sides thereof except so far as the owners lessees and occupiers of those lands may otherwise agree Provided also that the Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Generating station and works to form part of electricity undertaking.

23. The generating station and the works authorised by this Part of this Act and the subsidiary works connected therewith respectively and all lands and easements acquired or appropriated by the Corporation for the purposes thereof shall form part of the electricity undertaking and subject to the provisions of this Act the Corporation shall have and may exercise and enjoy in over upon and in relation thereto the same rights powers and privileges and shall be subject to the same duties obligations and liabilities as they have and may exercise

and enjoy or are subject to in over upon and in relation to the electricity undertaking. A.D. 1926.

Electric lines between generating station and electricity limits.

24. For the purpose of enabling electricity to be brought into the electricity limits from the generating station the Corporation may open and break up all or any of the streets and roads in the urban district of Portishead and the rural district of Long Ashton in the county of Somerset (including such portions (if any) of public streets and roads as are repairable by any railway company) and the provisions applying to the opening and breaking up of streets and roads within the electricity limits for the purpose of laying maintaining renewing repairing and replacing electric lines shall extend and apply to the opening and breaking up of streets and roads under the powers of this section for the purpose of laying maintaining renewing repairing and replacing electric lines for bringing electricity from the generating station into the electricity limits.

Application to electricity undertaking of schedule to Electric Lighting (Clauses) Act 1899.

25.—(1) As from the date of the passing of this Act the provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 60 83 and 84 of that schedule) shall extend and apply to the electricity undertaking subject to the following modifications in the application of the said schedule to the said undertaking (that is to say) :—

(*a*) Section 7 (Application of money received by local authority as undertakers) of the said schedule shall be read and have effect as if the words " other than stock or securities of the undertakers " were omitted from paragraph (*e*) of subsection (1) of that section;

(*b*) Section 14 (Notice of works with plan to be served on Postmaster-General and local authority) of the said schedule shall be read and have effect as if the words " No part of the month of August shall be included in calculating the above-mentioned period of one month " were omitted from paragraph (*a*) of subsection (1) of that section;

(*c*) Section 31 (Methods of charging) of the said schedule shall be read and have effect as if subsection (3) thereof were omitted therefrom

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and for the purposes of the Corporation's Electric Lighting Order and the provisions of the said schedule as applied by this section but with the said exception and subject to the said modifications this Act shall be deemed to be a special order.

(2) So much of the Corporation's Electric Lighting Order as is inconsistent with the provisions of the said schedule which are by this section applied to the electricity undertaking is hereby repealed.

(3) Nothing in this section or in section 35 (Appointment of electric inspectors) of the schedule to the said Electric Lighting (Clauses) Act 1899 shall invalidate any appointment of electric inspectors for the purposes of the electricity undertaking made under the provisions of the Corporation's Electric Lighting Order before the passing of this Act and all electric inspectors so appointed and holding office at the date of the passing of this Act shall be deemed to have been appointed under the provisions of the said section 35.

Power to break up streets not repairable by local authority &c.

26. The Corporation may for the purposes of the electricity undertaking but subject to the provisions of section 15 of the schedule to the Electric Lighting (Clauses) Act 1899 break up streets not repairable by the local authority and the railways and tramways mentioned in the Second Schedule to this Act:

Provided that the provisions of this section shall not apply to any street (not being a public highway) belonging to or maintainable by a railway company.

As to Barton Regis Order.

27. As from the passing of this Act the area of supply under the Barton Regis Order (being the area described in the Third Schedule to this Act) shall be added to and form part of the area of supply under the Corporation's Electric Lighting Order and the Barton Regis Order is hereby repealed.

As to use of transformers.

28. Where a separate transformer is provided at the expense of the Corporation for the purpose of affording a supply of electricity to any consumer the Corporation may use such transformer for the purpose of affording a supply of electricity to other consumers so long as such use does not prejudice or interfere with the supply for which such transformer was originally provided.

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Further powers as to entry upon premises.

29.—(1) The powers conferred by section 24 of the Electric Lighting Act 1882 of entering premises for the purposes mentioned in that section shall extend to enable the Corporation to enter any premises to which electricity is or has been supplied by them (whether for the time being occupied or not) and in or upon which they have reason to believe that there is or has been any contravention of any of the Acts or Orders relating to the electricity undertaking or of any byelaw or regulation made thereunder and to inspect such premises and any electric lines wires fuses casings switches fittings lamps lampholders or other apparatus therein and in any case in which any such contravention is found to exist or to have existed to cut off and disconnect the supply of electricity to the premises.

(2) Where any premises which the Corporation are entitled to enter in pursuance of the said section 24 as extended by this section are unoccupied or where the Corporation are unable to obtain admittance to any such premises though occupied the Corporation may after giving not less than forty-eight hours' notice to the owner thereof or if he is unknown to them and if he cannot be ascertained by them after diligent inquiry by affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

(3) Any person who shall refuse or neglect to admit any officer appointed by the Corporation to any premises which he is entitled to enter in pursuance of the said section 24 as extended by this section or shall hinder any such officer from entering any such premises or from exercising the powers contained in either of the said sections shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Power to cut off supplies where charges &c. not wholly paid.

30. The powers of the Corporation under section 21 of the Electric Lighting Act 1882 of cutting off supplies of electricity and cutting or disconnecting electric lines or works and of recovering the expenses incurred in such cutting off shall be exerciseable in any case in which any part of any charge or sum due to the Corporation in their capacity of electrical undertakers remains unpaid after the expiration of such period from the date of demand thereof as the Corporation may from time to time determine.

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Byelaws as to wires apparatus and fittings.

31.—(1) The Corporation may make byelaws for the purpose of preventing fire or any injury to persons in any building or premises supplied or proposed to be supplied with electricity by the Corporation with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply and may refuse to supply electricity or cut off and discontinue the supply of electricity to any building or premises in which such byelaws are not complied with.

(2) The provisions of section 6 of the Electric Lighting Act 1882 shall apply to any byelaws made under this section.

(3) No byelaw made under this section shall apply to or in respect of any building or premises (not being a dwelling-house) belonging to and used by any railway company for the purposes of their railway.

As to maximum power which may be demanded.

32.—(1) The quantity of electrical power with which any consumer shall be entitled to be supplied by the Corporation pursuant to section 42 (Maximum current) of the Corporation's Electric Lighting Order or section 28 (Maximum power) of the schedule to the Electric Lighting (Clauses) Act 1899 shall not include any supply of energy taken on extraordinary occasions or as a stand-by supply unless such consumer shall pay to the Corporation such minimum sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for those premises the sum so to be paid to be determined in default of agreement by arbitration in the manner provided by section 28 (Arbitration) of the Electric Lighting Act 1882.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

Use for lighting purposes of

33.—(1) No consumer shall without the consent in writing of the Corporation use or suffer to be used (whether after transformation or conversion or not) for

purposes of lighting or illuminating or for any process operation or purpose involving or requiring the use of light (all of which purposes are in this section referred to as "lighting purposes") the whole or any part of any electricity supplied to him by the Corporation for any other purpose.

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electricity supplied for power.

(2) Any consumer who without such consent shall use or suffer to be used for lighting purposes electricity supplied to him by the Corporation through a meter fixed for the purpose of ascertaining the value of the supply to him of electricity agreed to be supplied to him for any purpose other than lighting purposes shall be liable to a penalty not exceeding five pounds and to a daily penalty of forty shillings and shall in addition be liable to pay to the Corporation at such higher rate as they may be for the time being charging for the supply of electricity for the purpose for which the electricity is used by the consumer for all or any portion of the electricity which has been supplied to him for any other purpose within one year previous to the date when the Corporation shall sue for any penalty as aforesaid.

(3) Any court having jurisdiction to impose such penalty may and on the application of the Corporation shall decide as to the portion (if any) of such electricity in respect of which the higher charge as aforesaid shall be payable to the Corporation.

(4) The provisions of section 18 of the Electric Lighting Act 1909 shall apply to any person whom the Corporation have reasonable grounds for believing to be acting contrary to the provisions of this section.

Provisions as to supply of electricity by agreement.

34. If any consumer of electricity supplied by the Corporation under the terms of any agreement uses the electricity supplied to him by the Corporation in any manner contrary to the terms of such agreement—

(*a*) the Corporation may if they think fit discontinue to supply electricity to such consumer;

(*b*) the consumer shall in respect of all the electricity supplied to him by the Corporation within one year previous to the date of any demand in that behalf made upon him by the Corporation (whether they determine to discontinue the

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supply or not) be liable to pay to the Corporation at any higher rate which they may be for the time being charging for the supply of electricity for use in the manner or under the conditions in or under which such consumer used the electricity supplied to him; and

(*c*) the Corporation in any case in which they discontinue the supply as aforesaid shall not be required to resume the supply until—

(i) they are satisfied that any electricity supplied to such consumer will be consumed in accordance with the terms of such agreement; and

(ii) the consumer has paid to the Corporation the sum payable by him pursuant to the foregoing paragraph (*b*):

Provided that before discontinuing any such supply the Corporation shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify the respect in which the electricity is used contrary to the terms of such agreement.

Power to recover cost of cutting off supplies.

35. In any case in which the Corporation lawfully cut off a supply of electricity by reason of any act omission or default of a consumer or any other person they may recover from the person to whom the supply was theretofore furnished or from any other person on account of whose act omission or default such supply was cut off the expenses incurred by them in such cutting off in like manner as charges for electricity are recoverable by the Corporation.

Power to recover charge for reconnecting.

36. Any expenses reasonably incurred by the Corporation in reconnecting any electric line or other work through which electricity may be supplied which may have been lawfully cut off or disconnected by reason of any default of the consumer may be recovered by the Corporation in like manner as expenses lawfully incurred by them in such cutting off or disconnecting.

Period of error in defective meters.

37.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade or the Minister of Transport used by any consumer of electricity

being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have arisen during the then current quarter.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

Power to lay electric lines &c. in private streets.

38. The Corporation may upon the application of the owner or occupier of any premises in the electricity limits abutting on or in process of erection in any street laid out or made and whether dedicated to public use or not supply such premises with electricity and may lay down take up alter relay or renew in across or along such street such electric lines and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electricity (Supply) Acts 1882 to 1922 and of the schedule to the Electric Lighting (Clauses) Act 1899 as applied to the electricity undertaking so far as such provisions are applicable for the purposes of this section shall extend and apply to and for the purposes hereof and to any works constructed or executed by the Corporation under the powers of this section :

Provided that nothing in this section contained shall apply to any street not dedicated to public use belonging to and forming the approach to any station or depot of a railway company.

Power to construct electrical sub-stations in or under streets.

39. The Corporation may subject to the provisions of the Corporation's Electric Lighting Order (as amended by this Act) and this Act and of the Electricity (Supply) Acts 1882 to 1922 construct and maintain in or under any street dedicated to public use but not repairable by the inhabitants at large within the electricity limits sub-stations transforming stations transformer kiosks and other works in connection with the electricity undertaking and may in any such street provide and maintain all such means of access and approach to such substations transforming stations transformer kiosks and other works as may be necessary or convenient :

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Provided that the Corporation shall not under the powers of this section construct any such substation transforming station transformer kiosk or other work (*a*) in or upon any bridge carrying a street over a railway or the approaches thereto or under any bridge carrying a railway over a street or (*b*) in any street belonging to and repairable by a railway company and forming the approach to any station or depot of such company or (*c*) so as to obstruct the access to or exit from any station or depot of a railway company constructed and maintained under statutory authority except with the consent in writing of the railway company.

Supply to premises partly without electricity limits.

40. The Corporation may by agreement supply electricity to any house or building which or the curtilage of which is partly within and partly outside the electricity limits in the same manner as if such premises were wholly within such limits.

Method of charging for electricity.

41. Notwithstanding anything contained in the Electricity (Supply) Acts 1882 to 1922 or in any other Act or any Order relating to the Corporation or the electricity undertaking the Corporation may in all or any cases where they supply electricity charge for and in respect of such supply by any method from time to time selected by the Corporation and approved by the Minister of Transport Any such method may be other than by the actual amount of electricity supplied or the electrical quantity contained in such supply and may authorise a periodical charge in respect of the maximum power required by the consumer in addition to a charge for the electricity supplied to him.

Maximum prices for electricity.

42. The maximum prices which may be charged within the electricity limits by the Corporation as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Act Provided that during a period of seven years from the passing of this Act and any extension or extensions of that period which the Electricity Commissioners on the application of the Corporation may from time to time allow the prices to be charged by the Corporation for electricity supplied within so much of the electricity limits as is outside the city may subject to the said maximum prices exceed by not

more than ten per centum the prices for the time being charged by them for a corresponding supply within the city. A.D. 1926.

Application of electricity revenue.

43.—(1) Notwithstanding anything contained in section 58 (Application of moneys) of the Corporation's Electric Lighting Order or in section 7 of the schedule to the Electric Lighting (Clauses) Act 1899 as applied by this Act to the electricity undertaking the Corporation may if they think fit—

(*a*) after satisfying the requirements of paragraphs 1 to 4 of the said section 58 and of paragraphs (*a*) to (*d*) of subsection (1) of the said section 7 and before providing a reserve fund apply the electricity revenue in or towards the establishment of a fund for working capital to an aggregate amount not exceeding at any time ten per centum of the total capital expenditure on the electricity undertaking Provided that the Corporation shall not in any one year set aside out of the said revenue for the purposes of the said fund any sum exceeding ten thousand pounds;

(*b*) in lieu of or in addition to carrying the net surplus remaining in any year and the annual proceeds of the reserve fund when amounting to the prescribed limit or any part of such net surplus and annual proceeds to the credit of the local rate or of applying such net surplus and annual proceeds or any part thereof to the improvement of the city or in reduction of the capital moneys borrowed for electricity purposes apply such net surplus and annual proceeds as aforesaid or any part thereof in reduction of the charges for the time being made by the Corporation for the supply of electricity.

(2) Resort may be had to any such fund as aforesaid notwithstanding that such fund may not at the time have reached or may have been reduced below the maximum amount prescribed by this section and if the said fund be at any time reduced it may thereafter be again restored to the said maximum amount and so on as often as the reduction happens.

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For protection of Somerset Commissioners of Sewers.

44. For the protection of the commissioners of sewers for the county of Somerset (in this section referred to as "the commissioners") the following provisions shall unless otherwise agreed in writing between the commissioners and the Corporation apply and have effect (that is to say):—

(1) In connection with the exercise by the Corporation of the powers of the section of this Act of which the marginal note is "Electric lines between generating station and electricity limits" the provisions of section 18 of the schedule to the Electric Lighting (Clauses) Act 1899 shall apply as if within the meaning of the said section 18 the Corporation were the undertakers and the commissioners were a local authority and any river rhyne ditch stream or other work under the jurisdiction of the commissioners were a watercourse or work under the jurisdiction or control of the commissioners as such local authority:

(2) The Corporation shall so exercise the powers conferred by the said section of this Act as not to impede the flow of water in any river rhyne ditch stream or other work under the jurisdiction of the commissioners or to cause flooding therefrom.

Part IV.

General Provisions as to Works.

Power to deviate.

45. In constructing the works by this Act authorised the Corporation may deviate laterally from the lines or situations thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the said works as shown on the said sections to any extent not exceeding the following (that is to say):—

Work.	Upward deviation.	Downward deviation.
No. 1 - - - - - - -	3 feet	3 feet
Nos. 3 4 5 6 and 7 - - - - -	5 feet	10 feet
No. 8 - - - - - - -	55 feet	15 feet

Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Subsidiary works.

46.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans relating to the works by this Act authorised the Corporation may in connection with and for the purposes of those works make diversions widenings or alterations of the lines or levels of streets or roads for the purpose of crossing over or under the same or otherwise and may raise sink or otherwise alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe or electricity or telephone wire or apparatus and may remove any other obstruction within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section.

(2) The Corporation may within the said limits of deviation make erect place and maintain all such walls embankments gates sluices culverts channels tunnels shafts borings cuttings drains pipes weirs valves flaps pumps engines machinery and other works apparatus and appliances as may be necessary or convenient for or incidental to the works by this Act authorised or any of them or the construction maintenance repair renewal and use thereof.

(3) The Corporation shall not raise sink alter divert or otherwise interfere with any telegraphic line belonging to or used by the Postmaster-General except under and subject to the provisions of the Telegraph Act 1878.

(4) Any electrical works or apparatus made erected placed or maintained by the Corporation under the provisions of this section or the section of this Act the marginal note of which is "Provisions as to culverting of Mere Bank Rhine" shall be so constructed maintained and used as to prevent any interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of such line.

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(5) In this section "telegraphic line" has the same meaning as in the Telegraph Act 1878.

Power to break up streets &c.

47. The Corporation during and for the purposes of the execution of the works by this Act authorised or any of them may within the limits of deviation marked on the deposited plans break up and also temporarily stop up and interfere with any street or road and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any house in the street from passing along and using the same Provided that the Corporation shall provide reasonable access for foot passengers bona fide going to or from any such house and shall at all times maintain a proper and sufficient access both for vehicular and pedestrian traffic to the passenger and goods stations of any railway company.

Works below high-water mark to be subject to approval of Board of Trade.

48.—(1) Subject to the provisions of this Act any work authorised by this Act shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Lights on works during construction.

49.—(1) The Corporation shall at or near such part of the works by this Act authorised as shall be below high-water mark of ordinary spring tides during the whole time of the construction alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps

for the prevention of danger to navigation as the Board of Trade shall from time to time require or approve.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Permanent lights on works.

50.—(1) After the completion of the works by this Act authorised the Corporation shall at the outer extremity of those works below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Provision against danger to navigation.

51.—(1) In case of injury to or destruction or decay of the works by this Act authorised or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Corporation shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that corporation for directions as to the means to be taken.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

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Survey of works by Board of Trade.

52. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of any work constructed by the Corporation under the powers of this Act which shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides or of the site upon which it is proposed to construct any such work the Corporation shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Part V.

Lands.

Power to take and appropriate lands for works.

53. Subject to the provisions of this Act the Corporation may for the purposes of the works by this Act authorised enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require and may appropriate and use for the said purposes any lands so delineated and described belonging to them and not required for other purposes.

Power to take lands for various purposes.

54. Subject to the provisions of this Act the Corporation may enter upon and take and may hold and use for the purposes hereinafter respectively specified the lands in the city hereinafter referred to or any part or parts thereof so far as those lands are delineated on the deposited plans and described in the deposited book of reference (that is to say) :—

(1) For the erection of municipal buildings—

The lands and premises known as the Star Tavern in College Place:

(2) For the enlargement of the Avon View Cemetery of the Corporation—

The lands described in the Fifth Schedule to this Act.

Corporation may acquire easements.

55. Notwithstanding anything contained in this Act or in any Act wholly or partly incorporated therewith the Corporation shall not be required to purchase any

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railway river canal navigation watercourse drain or dyke or any part thereof respectively which may be crossed or interfered with in constructing the works by this Act authorised or any of them but may acquire such easements and rights in over or under any such railway river canal navigation watercourse drain or dyke as they may require for making maintaining and using the works by this Act authorised and such other works as aforesaid or any of them and may give notice to treat in respect of such easements and rights describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements and rights as fully as if the same were lands within the meaning of those Acts.

only in certain cases.

56.—(1) With respect to the lands shown on the deposited plans which are described in the Sixth Schedule to this Act the Corporation shall not be required to purchase or take such lands or any part of the surface thereof or any houses buildings or premises thereon or any cellar vault arch or other construction held or connected therewith but the Corporation may instead of purchasing and taking the same purchase and take an easement or right of using the subsoil and under-surface of any such lands and if the Corporation require to take use pull down or open any such cellar vault arch or other construction they may purchase take and use and the owners of and other persons interested in any such cellar vault arch or other construction shall sell the same for the purposes of such works.

Easements for works to be constructed in tunnel.

(2) The provisions of the Lands Clauses Acts with respect to lands shall extend and apply to such easements or rights of user and to such cellars vaults arches or other constructions except that the purchase of any such easement or right or of any such cellar vault arch or other construction shall not in any case be deemed the purchase of a part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845.

(3) Nothing in this section contained nor any dealing with the lands in pursuance of this section shall relieve the Corporation from the liability to compensate under

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Owners may be required to sell parts only of certain lands and buildings.

57. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Seventh Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties" :

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

(3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the arbitrator shall in addition to the other questions required to be determined by him determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other

portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :

(4) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion so determined to be severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the arbitrator :

(5) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :

(6) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

(7) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the

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owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Power to Corporation to enter upon property for survey and valuation.

58. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times on giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands or buildings.

Correction of errors in deposited plans and book of reference.

59. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county of Gloucester or for the county of Somerset (as the case may be) for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars

of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerks of the peace for the said counties and a duplicate thereof shall also be deposited with the town clerk or with the clerk to the Portishead Council (as the case may be) and such certificate and duplicate respectively shall be kept by such clerks of the peace and town clerk or clerk of the Portishead Council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Compensation in case of recently created interest.

60. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the following provisions shall apply and have effect (that is to say):—

(1) The arbitrator shall not take into account any building erected or any improvement or alteration made or any interest in land created after the first day of November one thousand nine hundred and twenty-five and before the date of the passing of this Act if in the opinion of the arbitrator the erection of the building or the making of the improvement or alteration or the creation of the interest in respect of which the claim is made was not reasonably necessary and was carried out with a view to obtaining or increasing compensation under this Act:

(2) Subject as is hereinafter in this section provided the arbitrator shall not take into account—

(*a*) any building erected after the date of the passing of this Act or any improvement or alteration of any premises (other than any improvement or alteration reasonably necessary for properly maintaining such premises) made after that date which in the opinion of the arbitrator materially enhances the value of such premises; or

(*b*) any interest in land greater than that of a quarterly tenant created after the date of the passing of this Act:

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(3) If at any time after the date of the passing of this Act and before the expiration of the period limited by this Act for the compulsory purchase of lands any person being the owner of or having any estate or interest in any premises which are liable to be acquired compulsorily under the powers of this Act gives notice in writing to the Corporation of his intention to erect any building upon or to make any improvement or alteration (other than any such improvement or alteration as is excepted from paragraph (*a*) of subsection (2) of this section) of or to create any such new interest as aforesaid in those premises (such intended building improvement alteration or new interest being specifically described in the notice) and the Corporation do not within one month after receiving any such notice serve upon such person notice to sell and convey or release his estate or interest in the said premises but serve such notice at any time after the expiration of the said period of one month—

(*a*) subsection (2) of this section shall not apply with respect to the building improvement alteration or new interest described as aforesaid; and

(*b*) subsection (1) of this section shall apply with respect to the said building improvement alteration or new interest as if the same had been erected made or created after the said first day of November and before the date of the passing of this Act:

(4) The Corporation shall forthwith after the passing of this Act send by post or deliver a copy of this section to all persons named in the deposited book of reference having an interest greater than that of a yearly tenant in any lands which are liable to be acquired compulsorily under the powers of this Act.

Limit of time for compulsory purchase of lands.

61. The powers of the Corporation for the compulsory purchase of lands under this Act shall cease on the thirty-first day of December one thousand nine hundred and twenty-nine.

As to private rights of way over land taken compulsorily.

62. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Corporation shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to use lands for enlargement of Avon View Cemetery.

63. As from the date of the acquisition by the Corporation of the lands referred to in paragraph (2) of the section of this Act of which the marginal note is "Power to take lands for various purposes" the said lands shall be added to and become and be part of the Avon View Cemetery of the Corporation and notwithstanding anything contained in any Act of Parliament or Order in Council to the contrary the Corporation in respect of the said lands shall have and may exercise and enjoy therein thereon thereover and in respect thereof such and the like powers rights authorities and privileges as they may for the time being have exercise and enjoy in on over and in respect of the existing burial grounds of the Corporation by virtue of the Burial Acts 1852 to 1906:

Provided that no part of the extension of the said cemetery by this Act authorised shall be made within three hundred yards of any existing house of the annual value of fifty pounds at the passing of this Act or of any garden or pleasure ground occupied therewith except with the consent in writing of the owner lessee and occupier of such house.

Part VI.

Licensing of Craft.

Craft not to be navigated in dock area unless licensed.

64.—(1) No craft shall be worked or navigated within the dock area unless a licence shall be in force relating to such craft which shall have been granted in pursuance of this Act or some previous Act for the time being in force.

(2) Whenever an application shall be made to the Corporation for a licence in respect of any craft the

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Corporation upon being satisfied as to the name and address of the owner and the description of the craft and (in the case of craft intended for the carrying of passengers) after measuring such craft and determining the number of passengers which the same is fit to carry shall assign to such craft a distinctive number and shall grant to the owner or owners of every such craft a licence to work or navigate the same in the dock area.

(3) In every such licence there shall be stated the name of the craft and the following particulars relating thereto—

(*a*) the name and address of the owner or the names and addresses of the owners;

(*b*) the number assigned to the craft by the Corporation;

(*c*) the description of the craft; and

(*d*) (in the case of any craft intended for the carrying of passengers) the number of persons which may be carried in such craft.

Name &c. of craft to be painted thereon.

65. The Corporation may require that the name of any craft licensed under the provisions of this Act or of any previous Act and the name of the owner or the names of the owners of such craft and the number assigned by the Corporation to such craft and (in the case of any craft intended for the carrying of passengers) the number of persons which may be carried in such craft shall be painted or engraved on or affixed to such part of such craft in letters and figures of such size and shall be so preserved and kept legible as the Corporation may from time to time by byelaw prescribe.

Power to inspect &c. craft.

66.—(1) It shall be lawful for all or any of the officers and servants of the Corporation authorised in that behalf generally or in any particular case by the Corporation at all reasonable times and from time to time to enter upon or into any craft in the dock area for the purpose of inspecting measuring surveying and examining the same and the owner or owners of such craft shall afford to such officers and servants all reasonable facilities for so entering upon or into inspecting measuring surveying and examining such craft.

(2) Every person who shall act in contravention of the provisions of this section or shall prevent obstruct

or hinder any such officer or servant from or in so entering upon or into inspecting measuring surveying or examining any craft shall for every such offence be liable to a penalty not exceeding ten pounds.

Power to refuse or revoke licences for craft.

67.—(1) If the Corporation after receiving and considering a report from any of their officers or servants who (being duly authorised in that behalf either generally or in any particular case) shall have examined any craft and after hearing the owner or owners thereof are of opinion that such craft is not fit to be used for carrying goods or persons (as the case may be) the Corporation may refuse to license such craft or may revoke any licence relating to such craft theretofore issued or granted in pursuance of the provisions of this Part of this Act or of any previous Act for the time being in force.

(2) Any owner deeming himself aggrieved by any such refusal or revocation may appeal therefrom to the Board of Trade and if the Board of Trade decide that such refusal or revocation is unreasonable the Corporation shall forthwith grant or re-grant such licence (as the case may be) and such costs of the successful party to the appeal as the Board of Trade shall direct shall be paid to such party by the unsuccessful party to such appeal.

Amendment and revocation of licences.

68. At any time if satisfied that any licence relating to any craft issued or granted in pursuance of the provisions of this Act states inaccurately particulars relating to such craft the Corporation may call in such licence and amend and re-grant the same or revoke the same and grant a new licence (as the case may be) instead thereof.

Alteration of carrying capacity of craft.

69.—(1) If at any time any craft in respect of which a licence shall have been issued under this Act or any previous Act for the time being in force shall be altered so as to affect the number of persons (if any) which such craft is fit to carry every licence before the making of such alteration granted in respect of such craft shall as from the time of the making of such alteration cease to be in force.

(2) In every case where by the operation of the provisions of this section any licence shall cease to be

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in force application may again be made to the Corporation for a licence in respect thereof and any such application shall be dealt with and acted upon by the Corporation in like manner as if it were an original application for a licence.

Penalty for working or navigating craft contrary to Act.

70. If any craft shall be worked or navigated in contravention of the provisions of the section of this Act whereof the marginal note is "Craft not to be navigated in dock area unless licensed" or without there being painted or engraved thereon or affixed thereto the particulars required by the Corporation under the provisions of the section of this Act of which the marginal note is "Name &c. of craft to be painted thereon" and in the manner so required the owner or owners of such craft shall for every such offence be liable to a penalty not exceeding five pounds.

Penalty where fictitious particulars exhibited on craft.

71. If at any time any person shall knowingly paint engrave or affix on or to any craft or shall work or navigate within the dock area any craft on or to which to his knowledge is painted engraved or affixed any name number or statement of the number of persons which may be carried therein not being the name number or statement of number of persons corresponding to a licence relating to such craft granted in pursuance of this Act and for the time being in force such person shall for every such offence be liable to a penalty not exceeding ten pounds.

Licences to be renewed annually.

72. Any licence granted in pursuance of the provisions of this Act in respect of any craft shall subject to the provisions of this Act remain in force for one year only from the date thereof unless renewed from time to time but no such renewal shall be for more than one year.

Effect of change of ownership.

73. Upon any change of ownership of any craft any licence relating to such craft granted under the provisions of this Act or of any previous Act for the time being in force shall thereupon cease to be in force.

Change of address.

74. The owner of any craft licensed under the provisions of this Act or of any previous Act for the time being in force who shall change his address shall forthwith notify the Corporation of such change and

produce to them the licence held by him and the Corporation on receipt of such notice and licence shall amend the licence accordingly.

Byelaws relating to licences.

75.—(1) The Corporation are hereby empowered from time to time to make alter amend and repeal byelaws for carrying into effect the objects of this Part of this Act with respect to the licensing of craft and for prescribing the fees which may be charged and taken by the Corporation (which fees the Corporation are hereby authorised to take) in respect of the following matters—

(i) Measuring any craft;
(ii) Granting any licence relating to any craft;
(iii) Renewing any licence relating to any craft;
(iv) Granting any duplicate of any lost or destroyed licence relating to any craft.

(2) The provisions of the Harbours Docks and Piers Clauses Act 1847 with respect to the byelaws to be made by the undertakers shall apply to all byelaws under this section but byelaws made under this section shall not come into operation until the same shall have received the confirmation of the Board of Trade which shall be sufficient for all purposes.

Names of craft.

76. No owner or owners shall have two craft of the same name.

Part VII.

Streets Buildings and Drains.

Power to determine width of carriageways and footways.

77. The Corporation may if they think fit in any case vary the relative widths of the carriageway and footway or footways in any street in the city repairable by the inhabitants at large Provided that twenty-one days before commencing any work under this section which will materially reduce the width of any carriageway or footway the Corporation shall send notice of the proposed work to the Minister of Transport.

Building line in streets.

78.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings

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in force within the city distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line") and the Corporation shall be deemed to have approved any building line unless within six weeks after the date of submission thereof they shall have signified to the person submitting the same their disapproval thereof.

(2) The Corporation may also prescribe the building line to be observed in those parts of any street (not being a highway maintainable by them) already formed upon which buildings have not already been erected.

(3) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building if the building line for such street has been disapproved by the Corporation or before the expiration of the six weeks aforesaid without their approval nor beyond or in front of the building line approved or prescribed by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(4) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been approved or prescribed by the Corporation.

(5) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of a new street than one-half of the width of the street and ten feet in addition or in the case of a street already formed to a greater distance from the centre of the street than the line at which buildings could be erected having regard to the provisions of the Public Health (Buildings in Streets) Act 1888 the Corporation shall make compensation to the owner of any land lying between the said distance

from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(6) For the purposes of this section the surveyor shall by a certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(7) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

Development scheme in connection with new streets.

79.—(1) Whenever application shall be made to the Corporation to approve the laying out of or notice shall be given to the Corporation of intention to lay out a new street the Corporation may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Corporation with plans and particulars showing the general scheme (if any) for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on which plans and particulars required as aforesaid shall be so furnished.

(2) In this section the expression "lay out a new street" includes the formation of a new street or the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street.

Appeal to petty sessional court in respect of certain provisions of this Part of Act.

80.—(1) Any person deeming himself aggrieved by any requirement of or by the Corporation under either of the last two preceding sections of this Act may within fourteen days from the date of such requirement appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court may seem just.

(2) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

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As to pavement lights.

81.—(1) From and after the passing of this Act it shall not be lawful for the owner or occupier of any property to construct in any pavement forming part of any street in the city any work for the admission of light through such pavement to any room or premises situate under or adjoining the same (in this section referred to as "pavement lights") without the consent in writing of the Corporation.

(2) In giving their consent to the construction of any pavement lights the Corporation may attach thereto such terms and conditions as they may think fit.

(3) Any agreements entered into by the Corporation with any person prior to the passing of this Act which would have been valid under the provisions of this section if made after the passing thereof are hereby confirmed.

As to erection of retaining walls.

82.—(1) Before any person shall erect on any land a retaining wall of greater height than six feet abutting on or adjacent to any street or road he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as approved by the Corporation.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Prevention of obstruction to view at corners of streets not repairable by inhabitants at large.

83. Section 4 of the Roads Improvement Act 1925 in its application to the city shall extend to enable the Corporation to exercise with respect to streets in the city not repairable by the inhabitants at large the powers exerciseable by them under the said section with respect to highways maintainable by them and the provisions of the said section shall with the necessary modifications apply and have effect accordingly.

Banners and signs over streets.

84.—(1) If the Corporation shall by resolution determine that any banner streamer sign or lettering

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suspended across or hung over any street for the purposes of advertisement or announcement is a nuisance or objectionable by reason of its size construction or situation or an injury to the amenities of the city they may by notice in writing require the owner of or person responsible for the suspension or hanging of such banner streamer sign or lettering to remove the same within such period not being less than twenty-four hours as may be specified in the notice.

(2) Any person neglecting or refusing to comply with the requirement of any such notice and any person who shall have removed any such banner streamer sign or lettering as is referred to in any such notice (whether the removal be effected before or after the receipt of the notice) and shall after such removal suspend or hang the same or any similar banner streamer sign or lettering without the permission in writing of the Corporation or without complying with any conditions attached to any such permission shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

(3) For a period of two years from the passing of this Act the foregoing provisions of this section shall not apply to any such banner streamer sign or lettering as is referred to in subsection (1) hereof which was in use on the first day of November one thousand nine hundred and twenty-five.

(4) (*a*) Any person deeming himself aggrieved by the withholding of any permission of the Corporation under this section or by any condition attached to any such permission may within fourteen days from the date of the intimation to him of such withholding or of the attaching of such condition appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court may seem just;

(*b*) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

Byelaws as to

85. The power given by subsection (4) of section 23 of the Public Health Acts Amendment Act 1890 to make

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alterations to old buildings.

byelaws with respect to the alteration of buildings shall be extended so as to authorise byelaws with respect to the alteration of buildings whether or not erected in accordance with byelaws or with the Bristol Improvement Acts 1840 and 1847 and with respect to the giving or submission in respect of the alteration of such notices plans and sections as can be required in relation to the erection of a new building.

Byelaws as to materials and construction of buildings &c.

86.—(1) Section 157 of the Public Health Act 1875 shall be extended so as to enable the Corporation to make byelaws with respect to the following matters (namely) :—

(*a*) The materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings or be newly set or reset in existing buildings and the thickness and construction of walls of all ovens and furnaces wholly or partially built after the commencement of this Act;

(*b*) The uniting of buildings and the making and stopping up of openings in party walls of buildings and the provision of fire-resisting doors in connection therewith and as to the occupation of buildings when united;

(*c*) The structure of walls and partitions dividing separate tenements or rooms belonging to different owners for securing stability and the prevention of fires and for purposes of health;

(*d*) The testing of drains of new buildings;

(*e*) For securing that waterclosets constructed after the making of such byelaws shall be so constructed and supplied with water that they can be adequately flushed by mechanical means and the provision to be made for securing the protection of the same from frost;

(*f*) The provision of storage accommodation for food in new and reconstructed dwelling-houses or tenements or blocks of tenements;

(*g*) For prescribing the floor area of rooms intended to be used for human habitation;

(*h*) For securing that the internal surfaces of the walls and ceilings of rooms used or intended to be used for human habitation shall be properly covered with plaster or other suitable material;

(*i*) For securing that every fireplace or chimney opening in a building shall have a hearth;

(*j*) For requiring the submission of plans and sections in the case of existing buildings in or in connection with which drains are altered or constructed in whole or in part;

(*k*) For requiring notice to be given of the erection or formation of bath rooms or the fixing of geysers or other hot water apparatus in connection with bath rooms and for securing that proper ventilation shall be provided for such apparatus and for any such apparatus fixed before the passing of this Act or the making thereunder of any byelaw relating to such matters;

(*l*) For requiring the plans and sections deposited in pursuance of any provision in any local Act for the time being in force to be drawn on such materials and in such manner as may be prescribed in such byelaws.

(2) Before making any byelaw under paragraph (*k*) of subsection (1) of this section with respect to the fixing of geysers or of hot water apparatus in which the water is heated by means of gas the Corporation shall give not less than one month's notice to the Bristol Gas Company of the intention of the Corporation to make such byelaw and such notice shall be accompanied by a copy of the draft byelaw and the Corporation shall confer with the said company thereon before they submit the same to the Minister of Health for confirmation and the said company shall be entitled to make representations to the Minister of Health with regard thereto.

Houses not to be erected on streets not formed and sewered.

87.—(1) No house or other building or structure shall be erected on or adjoining any land laid out or intended to be laid out as a new street unless and until the laying out of such street shall have been approved by

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the Corporation and such new street shall have been formed to the satisfaction of the Corporation and sewered in accordance with a plan and section and particulars approved by them:

Provided that nothing in this section shall be deemed to enable the Corporation to require the new street to be laid out of a greater width or permit it to be laid out of a less width than the width applicable to the street under the byelaws for the time being in force with respect to new streets and buildings.

(2) (*a*) Any person deeming himself aggrieved by the withholding of any approval under this section or by any condition subject to which such approval is given or by any requirement of the Corporation made in pursuance of this section may within twenty-one days after the date of the notice communciating the decision of the Corporation with reference to the laying out formation or sewering of the street appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court may seem just;

(*b*) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(3) If the Corporation shall not have communicated their decision with reference to the laying out formation or sewering of the street within one month after notice of the intention to erect a house building or structure has been sent to the surveyor or the town clerk in pursuance of the byelaws or some statutory provision in force in that behalf the provisions of this section shall not be deemed to prohibit the erection of that house building or structure.

Further power to make byelaws as to new buildings &c.

88.—(1) (*a*) For the purpose of assisting the Corporation in the exercise of the powers conferred upon them by this section a standing advisory committee of three members (in this section called "the advisory committee") shall be constituted for the city of whom one member shall be a Fellow of the Royal Institute of British Architects to be nominated by the President of the said Institute one member shall be a Fellow of the

Surveyors' Institution to be nominated by the President of the said Institution and one member shall be a justice of the peace to be nominated by the council Provided that a member of the council shall be disqualified from being a member of the advisory committee; A.D. 1926.

(*b*) Subject as aforesaid the members of the advisory committee shall be appointed by the council and any vacancy occurring on the advisory committee shall be filled by the council on the nomination of the person or body by whom the member causing the vacancy was nominated The Corporation shall pay the members of the advisory committee such reasonable fees and expenses as the Corporation think fit;

(*c*) The advisory committee may determine any matter referred to them in such manner as they in their discretion shall think fit and they shall within one month after the receipt of the reference give their decision thereon and any such decision shall have effect as if it were an approval or disapproval (as the case may be) of the Corporation and in the latter case shall contain a statement of the grounds on which the decision is arrived at;

(*d*) Every such decision shall forthwith be reported to the Corporation and upon receipt thereof by the Corporation a copy shall forthwith be sent by the Corporation to the person or persons affected thereby;

(*e*) In the event of a division of opinion among the members of the advisory committee upon a reference to them the matter shall be decided by a majority of votes of the members of the committee but save as aforesaid the advisory committee shall act by their whole number;

(*f*) The costs of any reference to the advisory committee shall be paid as the advisory committee may direct Where such costs or part thereof shall be payable to any person other than the Corporation they shall be recoverable by that person and where such costs or part thereof shall be payable to the Corporation they shall be recoverable by the Corporation and in both cases summarily as a civil debt.

(2) Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 is

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hereby extended so as to enable the Corporation to make byelaws providing in such manner as they may think necessary for the deposit by a person intending to construct—

(*a*) a building within the city; or

(*b*) an addition to an existing building within the city (including the reconstruction of an existing addition to any such building); or

(*c*) a chimney exceeding forty-five feet from the ground in height

of drawings of the elevations and particulars as to the materials of such building or addition or chimney (in this section called collectively "elevations").

(3) Where elevations are required to be submitted to the Corporation by a byelaw made under the said section 157 as extended by this section the Corporation shall within one month after the delivery of the elevations—

(*a*) approve the elevations; or

(*b*) (if they shall consider that having regard to the general character of the buildings in the city or of the buildings proposed therein to be erected or of the building upon or to which the addition is to be constructed or reconstructed the building or addition or chimney to which the elevations relate would seriously disfigure the city whether by reason of the height of the building or addition or chimney or its design or the materials proposed to be used in its construction) refer the question of the approval of the elevations to the advisory committee for their decision thereon and the reference shall be accompanied by a statement of the grounds on which the proposed building or addition or chimney is considered to be objectionable.

(4) The Corporation shall forthwith send notice in writing to the person by whom the elevations were deposited of their approval thereof or if the building or addition or chimney is considered to be objectionable on any of the grounds mentioned in this section of the reference of the elevations to the advisory committee and the notice shall be accompanied by a statement of the objections to the building or addition or chimney.

(5) The person by whom the elevations were deposited shall be entitled to send to the advisory committee a statement of his answers to the objections of the Corporation and if he does so he shall at the same time send a copy thereof to the town clerk.

(6) Where the elevations of a building or addition or chimney have been disapproved under this section it shall not be lawful to erect the building or addition or chimney until the elevations thereof have been approved by the Corporation and any person who acts in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

(7) The provisions of paragraph (*b*) of subsection (2) of this section shall not apply to a wooden hoarding which is used solely for the purposes of bill posting.

Means of escape from buildings in case of fire.

89.—(1) Every new building which exceeds two storeys in height and in which the upper surface of the floor of any upper storey is above twenty feet from the street level and which is used or intended to be used as flats or as a tavern hotel hospital boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant shall be provided on each of the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in case of fire for the persons dwelling sleeping or employed in each such upper storey or resorting thereto as may be reasonably required by the Corporation under the circumstances of the case and the owner shall not permit such building to be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) The Corporation in the case of every existing building exceeding two storeys in height and used or intended to be used as flats or as a tavern hotel hospital boarding-house common lodging-house or school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant if in their opinion such building is not provided with proper and sufficient means of escape from each storey the upper

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surface of the floor whereof is above twenty feet from the street level in case of fire for the persons dwelling or sleeping therein may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the means of escape so required.

(3) Where the means of escape in case of fire provided in connection with any such building as aforesaid shall become inadequate in consequence of any alteration in the circumstances or conditions affecting such building the owner of the building shall upon the requirement of the Corporation make such alterations in the said means of escape as may be reasonably necessary and shall if so required by the Corporation provide further or other means of escape.

(4) (*a*) Any person aggrieved by any requirement of the Corporation under subsection (2) or subsection (3) of this section may appeal to a court of summary jurisdiction within seven days after the receipt of the requirement provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(*b*) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under either of the said subsections.

(5) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirement of the Corporation under this section.

(6) If the owner alleges that the occupier of the building ought to bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to the county court and thereupon the county court after hearing the occupier may make such order as appears to the court just and equitable under all the circumstances of the case.

(7) The means of escape in case of fire provided in connection with any such building as aforesaid shall not be

altered without the consent in writing of the Corporation and shall at all times be maintained and kept by the occupier of the building in good and efficient condition and free from obstruction.

(8) This section shall not apply to premises to which section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or any enactment amending those sections apply.

(9) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(10) Where an existing building is newly converted after the passing of this Act into flats it shall be deemed to be a new building within the meaning of this section.

As to repair of private drains.

90. If any drain (including any joint or combined drain) shall not be well and sufficiently maintained and kept in good repair to the satisfaction of the Corporation it shall be lawful for the Corporation if in their opinion such drain can be sufficiently repaired at a cost not exceeding thirty pounds to cause the same to be repaired and the expenses of such repairs may be recovered by them from the owner or owners thereof in such proportions as the surveyor shall determine Provided that where such expenses do not exceed twenty shillings the Corporation may remit the payment of the same by the owner or owners if they think fit.

Repeal and amendment of certain provisions of Bristol Improvement Acts 1840 and 1847.

91.—(1) As from the first day of April one thousand nine hundred and twenty-eight or any earlier date on which new byelaws made by the Corporation with respect to new streets and buildings shall have been allowed by the Minister of Health the following provisions of the Bristol Improvement Acts 1840 and 1847 shall be and are hereby repealed (that is to say):—

Bristol Improvement Act 1840—

Section 14 (Buildings within the city and county divided into classes);

Section 15 (Rules as to the rates of building to be affixed as additions to any existing buildings);

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Section 17 (Fees to be paid to the surveyor);

Section 18 (Notice to be given to the surveyor of the intention to build or repair);

Section 19 (Penalty for not giving notice of intention to build or repair);

Section 23 (External walls to be constructed of bricks or stone);

Section 24 (Party and separate side walls to be constructed of certain materials);

Section 25 (No cutting to be made in the rough party walls except for communication or for tying in adjoining building or erecting steps &c.);

Section 28 (How owners who have built partitions or party walls are to be reimbursed part of their expence and in what proportion Until payment of the expence the property of the party wall &c. vested in the person building the same When a proportionate part is to be paid Rates for building party walls &c. Ten days after party wall is finished an account to be left with the owner of the adjoining building which he is to pay How expences may be recovered);

Section 29 (When building erected over a public way or divided into separate tenements party arches or party walls to be erected);

Section 30 (Owner of party wall may raise the same under certain restrictions Adjoining chimneys and flues to be raised);

Section 32 (If buildings now standing shall hereafter be re-built to be under regulations of Act);

Section 34 (Houses to be roofed but not with boards or thatch); and

The following words in section 35 (Funnel for conveying smoke not to be erected next to

any road or nearer to any timber than fourteen inches) namely:—

> "nor shall any such pipe or funnel be fixed on the inside of any such house or other building nearer than fourteen inches to any timber or other combustible material whatsoever nor shall any such pipe or funnel already so fixed be suffered to remain for a longer period than thirty days after the owner or occupier of the premises shall have received notice from the surveyor of the district to remove the same and if any such pipe or funnel shall be fixed or placed or suffered to remain contrary to this Act the owner or occupier of the premises shall forfeit and pay the sum of ten pounds and a further sum for every week the same shall continue not exceeding ten shillings."

Bristol Improvement Act 1847—

Section 13 (Provisions in recited Act having reference to the Second Schedule annexed thereto repealed);

Section 14 (Powers of recited Act referring to Second Schedule thereto to refer to Schedule (B) hereto);

Section 15 (Power to reduce fees payable under recited Act);

So much of section 24 (What shall be deemed party walls &c.) as follows the words "such houses warehouses or other buildings respectively";

Section 33 (As to the mode of building party walls and separate side walls);

Section 34 (Separate wall not to become a party wall);

Section 35 (How party walls are to be finished);

Section 36 (Party walls may be carried above roofs);

Section 37 (Walls to be carried up above the roofs of adjoining premises);

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Section 38 (Backs of chimneys to be pargetted with mortar);

Section 39 (How chimney backs are to be constructed);

Section 40 (Prescribing the width of new streets &c.); and

The Schedule (*b*) (including the rules contained in that schedule).

(2) The Corporation may make and enforce byelaws with respect to the thickness of such party arches as are referred to in section 25 (House divided to have party walls) of the said Bristol Improvement Act 1847 and there shall be substituted for the references in that section to the thickness required by that Act references to the thickness or thicknesses required for party walls arches and partitions by such byelaws or any other byelaws which are in force for the time being.

As to reimbursement of expense of building party walls or arches in certain cases.

92.—(1) The person at whose expense any party wall or party arch has before the date on which the provisions of the section of this Act of which the marginal note is "Repeal and amendment of certain provisions of Bristol Improvement Acts 1840 and 1847" come into operation been built agreeably to the directions of the Bristol Improvement Act 1840 or shall after that date be built in accordance with the new byelaws referred to in the said section of this Act (which party wall or party arch is in this section referred to as "the existing wall or arch") shall be reimbursed by the owner entitled to the improved rent of the adjoining building or ground (in this section referred to as "the adjoining owner") who shall at any time make use of the existing wall or arch a part of the expense of building the same in such proportion as the thickness required by the said Act or byelaws of any party wall or party arch erected for or in connection with a building such as the building for or in connection with which the adjoining owner makes use of the existing wall or arch bears to the thickness of the existing wall or arch and in such proportion also as so much of the existing wall or arch as the adjoining owner shall make use of shall bear to the whole of the existing wall or arch.

(2) Until such proportional part of such expense be so paid the sole property of the existing wall or arch

and of the whole ground whereon the same stands shall be vested entirely in the person at whose expense the same was or shall be built and such proportional part of the expense of building the existing wall or arch shall be paid to the person at whose expense the same was or shall be built or in whom the property thereof shall be vested at the times hereinafter mentioned (that is to say):—

(*a*) In respect of every such wall or arch to any house or building whereunto at the time of building the same no house or building was adjoining then so soon as such party wall or arch shall be first cut into or made use of; and

(*b*) In respect of every such wall or arch as shall be built against or adjoining to any other house or building then so soon as such wall or arch shall be completely built and finished.

(3) In respect of any such wall or arch as is referred to in paragraph (*b*) of subsection (2) of this section the owner or occupier of the adjoining house or building shall together with such proportional part of the expense of building the existing wall or arch as aforesaid pay a like proportional part of all other expenses incurred in pulling down the old party wall or partition and the whole of the expense of shoring up such adjoining house or building and of removing any goods furniture or other things and of pulling down any wainscot or partition.

(4) The expense of building the existing wall or arch shall be estimated at the common and usual rate for such kind of building within the city at the time of building the same allowing a reasonable deduction thereout for the materials (if any) of so much of the old wall or arch as did belong to the adjoining building or ground.

(5) Within ten days after the existing wall or arch shall be first cut into or made use of or shall be completely built and finished (as the case may be) or so soon after the expiration of that period as conveniently may be the owner of the wall shall deliver to the adjoining owner or leave at such adjoining house or building (as the case may be) an account in writing of the number of perches of the existing wall or arch for which the

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adjoining owner or the owner of such adjoining house or building is liable to pay and of the deduction which either of such last-mentioned owners is entitled to make thereout on account of such materials as aforesaid and also an account of such other expenses as aforesaid whereupon it shall be lawful for the tenant or occupier of the adjoining house building or ground to pay such proportional part as aforesaid to the owner of the wall for the same and such other expenses as aforesaid and to deduct the same out of the rent which shall become due from such tenant or occupier to the owner under whom he holds the same respectively until he shall be reimbursed the same.

(6) In case any sum payable as aforesaid be not paid within twenty-one days next after demand thereof then the same shall and may be recovered with costs from the owner liable to pay the same in any court of competent jurisdiction and in any proceedings for the recovery of any such sum it shall be lawful and sufficient for the plaintiff to sue for money paid by the plaintiff to the use of the defendant without setting forth the facts specially.

As to raising of party walls.

93.—(1) At any time after the date on which the provisions of the section of this Act of which the marginal note is "Repeal and amendment of certain provisions of Bristol Improvement Acts 1840 and 1847" come into operation it shall be lawful for the owner or part owner of any external or party wall to raise the same provided that the wall when raised will be of the substance required by any such byelaw as is referred to in the said section of this Act according to the increased height of such wall when completed but no such raising shall take place between any existing gable ends or on any timber sides or fronts of houses.

(2) In case any building so raised shall be of greater height than any adjoining building and the flues or chimneys of such adjoining building are in the party wall or separate side wall adjoining the building so raised the party raising such building shall at his own expense build up such flues and chimneys so that the top thereof may be carried up to the same height in relation to the building so raised as before the same had been raised.

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(3) If the wall between any building raised under the powers of this section or raised (before the date first mentioned in this section) under the powers of section 30 (Owner of party wall may raise the same under certain restrictions Adjoining chimneys and flues to be raised) of the Bristol Improvement Act 1840 and any building adjoining the same is a party wall common to both buildings then in the event of the owner of such adjoining building making use of any portion of the party wall so raised the party raising such party wall shall be paid by the owner of such adjoining building a fair proportion of the expense of so much of the said party wall as he may make use of at any time after the erection thereof.

(4) In no case shall any demand be made for raising such wall or such chimney or flues if no other use is made of them than before the same were raised.

Certain provisions of this Part of Act not to apply to property of railway companies.

94. Nothing in this Part of this Act except the sections whereof the marginal notes are—

"Development scheme in connection with new streets";

"As to pavement lights";

"Banners and signs over streets"; and

"Means of escape from buildings in case of fire"

shall extend or apply to any building (not being a dwelling house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers or to any land held or acquired or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway work or land is used or held by such company primarily for railway purposes.

Part VIII.

Sanitary.

Regulation dustbins.

95.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide portable covered dustbins of galvanised iron or other iron material approved by the Corporation in lieu of ashpits or ashtubs or other

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(2) Every owner or occupier having provided any receptacle pursuant to this section shall maintain the same in good order and condition.

(3) Provided that the foregoing provisions of this section shall not apply to any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

(4) From and after the passing of this Act it shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

(5) The owner or occupier of all premises in connection with which a dustbin has been provided as required by this section shall if so required by the Corporation pay to the Corporation on each first day of April after such provision such sum not exceeding five shillings as the Corporation may from time to time by resolution determine for or towards the maintenance repair and renewal by them of such dustbin Such payments shall be in satisfaction of the obligation of such owner or occupier in regard to the maintenance of such dustbin.

(6) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under subsection (1) of this section or who fails to comply with his obligation under subsection (2) of this section as the case may be shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (4) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

(7) The Corporation and the owner or occupier of any premises may enter into and carry into effect agreements and arrangements for and with respect to

the provision and maintenance by the Corporation of a dustbin or dustbins for use in connection with such premises upon and subject to such terms and conditions as may be agreed between the contracting parties.

(8) Nothing in this section shall apply to or in respect of any premises (other than a dwelling-house) belonging to or used by any railway company primarily for railway purposes and from which the Corporation do not remove the refuse.

As to filthy premises.

96.—(1) If the owner of any dwelling-house or premises occupied therewith represents to the Corporation that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Corporation duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if the Corporation are satisfied of the truth of the representation of such owner the occupier shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be enforced in the manner provided by section 34 (Summary order to do act other than a payment of money) of the Summary Jurisdiction Act 1879.

(2) Any expenses incurred by the Corporation under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

Power to order alteration of chimneys.

97. It shall be lawful for a court of summary jurisdiction upon complaint by the Corporation upon a report by the medical officer or sanitary inspector that any smoke gas or vapour from any chimney of a wash-house or outbuilding forming part of or in proximity to a dwelling house is a nuisance to any of the inhabitants of the city to make an order requiring the owner of such chimney to cause the same to be raised or a funnel or pipe to be placed thereon for conveying away such smoke gas or vapour or such other means to be adopted as may seem fitting to such court and as shall not exceed an expenditure of ten pounds for preventing or mitigating such nuisance within such time as shall be specified in such order and any such owner as aforesaid who shall neglect or refuse to obey such order shall be

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liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Disinfection in case of tuberculosis.

98.—(1) (*a*) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any boat tent van or similar structure used for human habitation) or any part thereof would tend to prevent or check tuberculosis the town clerk shall give notice in writing to the owner or occupier of such building that the same or such part thereof will be cleansed and disinfected by and at the cost of the Corporation unless the owner or occupier of such building informs the Corporation within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within the time to be fixed in the notice If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Corporation as aforesaid or if having so informed the Corporation as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer:

Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer;

(*b*) For the purpose of carrying into effect the provisions of this subsection the Corporation may by any officer who shall be authorised in that behalf in writing under the hand of the town clerk and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon;

(*c*) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and if the offence is a continuing one to a daily penalty not exceeding twenty shillings.

(2) (*a*) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Corporation for removal for the purposes of disinfection and any person who fails to comply with such requirement shall be liable to a penalty not exceeding five pounds;

(*b*) Such articles books things bedding and clothing shall be disinfected by the Corporation and returned to the owners free of charge.

(3) If any person sustains any damage by reason of the exercise by the Corporation of any of the powers of this section in relation to any matter as to which he is not himself in default full compensation shall be made to such person by the Corporation and the amount of the compensation shall be recoverable in and in any case of dispute may be settled by a court of summary jurisdiction.

Discontinuance of offensive trade.

99.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and in the opinion of the Corporation it is inexpedient in the interests of public health that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Corporation under the hand of the town clerk to cease to use such premises for the carrying on of such offensive trade Provided that the formation or expression by the Corporation of an opinion under this subsection shall be deemed to be a determination of the Corporation within the meaning of the section of this Act of which the marginal note is "As to appeal" and that the provisions of that section shall accordingly apply with respect to such opinion as well as to any requirement by the Corporation under this subsection.

(2) Any person who fails or neglects to comply with the provisions of subsection (1) of this section

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shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person such compensation for any loss sustained by him in consequence of the action of the Corporation as may be agreed upon between the Corporation and such person or as failing agreement shall be determined by arbitration under the provisions of the Arbitration Act 1889 Provided that this sub-section shall not apply in the case of any premises with respect to which the consent of the Corporation shall have been given for a period only unless the Corporation shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Corporation with reference to offensive trades.

Part IX.

Human Food.

Registration of premises used for manufacture &c. of potted meats and ice-cream.

100.—(1) Any premises used or proposed to be used for—

(*a*) the preparation or manufacture of potted or preserved meat fish sausages or other food intended for the purposes of sale; or

(*b*) the manufacture or sale of ice-cream

shall be registered by the owner or occupier thereof with the Corporation from time to time and no premises shall be used for the purposes aforesaid or any of them unless the same are registered as aforesaid.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Provided that the provisions of this section shall have no application to any premises occupied as a factory or workshop respecting which notice is required by sub-section (1) of section 127 (Notice of occupation of factory

or worshop) of the Factory and Workshop Act 1901 to be given and shall not in any way affect the operation of that Act.

Penalty on original vendor of unsound food.

101.—(1) Where it is shown that any animal or article liable to be seized under sections 116 to 119 of the Public Health Act 1875 and section 28 of the Public Health Acts Amendment Act 1890 and found in the possession of any person was sold to him by another person for the food of man (the proof that the same was not sold for the food of man resting with the party charged) and when so sold was in such a condition as to be liable to be so seized and to be condemned under section 117 of the Public Health Act 1875 the person who so sold the same shall be punishable as mentioned in the said section 117 unless he proves that at the time he sold the said animal or article he did not know and had no reason to believe that the said animal or article was in such condition.

(2) Where any article of food has been condemned by a justice under section 117 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 the person to whom the same belongs or did belong at the time of deposit of such article for the purpose of sale or of preparation for sale as well as the persons in those sections mentioned shall also be punishable as mentioned in the said section 117 unless he proves that at the time of such deposit he did not know and had no reason to believe that the said article was in such a condition as to be liable to be so condemned.

(3) Before any animal or article liable to be condemned under section 117 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 and this section is dealt with by a justice the medical officer or the sanitary inspector shall inform the person in whose custody or possession the same was at the time when it was inspected by the medical officer or sanitary inspector of the intention of the medical officer or sanitary inspector to have the same dealt with by a justice and any person who may be liable in respect of such animal or article to a prosecution under the aforesaid provisions shall be entitled to attend the proceedings before the justice and to be

A.D. 1926. heard with his witnesses upon the application for the condemnation of any such animal or article.

Power to search vehicles for unsound food.

102.—(1) It shall be lawful for the medical officer or the sanitary inspector or any other officer duly authorised by the Corporation in that behalf (each of whom is in this section referred to as "the searching officer") to require any person in charge of a vehicle in the city which the searching officer has reason to believe contains or may contain any article of human food which is diseased unsound or unwholesome or unfit for the food of man to stop such vehicle and to permit the searching officer to search such vehicle for the purpose of ascertaining whether it contains any such article of human food as aforesaid.

(2) If the searching officer finds in any such vehicle any article of human food which is diseased unsound or unwholesome or unfit for the food of man he may (unless he is satisfied that such article is not exposed for sale or deposited in such vehicle for the purpose of sale or of preparation for sale and intended for the food of man) seize and carry away such article and cause the same to be dealt with in manner provided by the Public Health Acts relating to unsound meat and other articles of food exposed for sale or deposited in any place for the purpose of sale or of preparation for sale and the provisions of the said Acts shall apply and have effect accordingly.

(3) If any person refuses or neglects to comply with any requirement of the searching officer to stop any vehicle or obstructs the searching officer in the exercise of his powers under this section he shall be liable to a penalty not exceeding five pounds.

Byelaws as to inspection of meat.

103.—(1) The Corporation may make and enforce byelaws for preventing meat or any part of the carcase of an animal brought into the city and intended for the food of man from being used for the food of man or being offered for sale or sold or deposited for sale or for preparation for sale until after inspection by an officer of the Corporation.

(2) Provided that any byelaw made by the Corporation under subsection (1) of this section shall provide (i) that any person bringing any meat (other than foreign

meat) or any part of the carcase of an animal into the city shall give to the medical officer reasonable notice in writing of the day and hour and place in the city on and at which the meat or any part of the carcase can be inspected as aforesaid and (ii) that if within such reasonable period after the notified hour as may with due regard to the requirements of the trade be prescribed by the byelaw an officer of the Corporation shall not have attended at the place so notified for the purpose of inspection the restriction in subsection (1) of this section referred to shall not apply to the meat or any part of the carcase in respect of which the notice was given.

(3) Provided also that no byelaw made by the Corporation under subsection (1) of this section shall apply to meat which has been inspected and passed as fit for the food of man by the medical officer of health of the district in which the animal has been slaughtered or by a duly qualified inspector being an official of or authorised to act on behalf of the sanitary authority of such district but the Corporation shall be entitled to require reasonable proof that the meat has been inspected and passed as aforesaid.

(4) With a view to facilitating the carrying into effect of any byelaws made in pursuance of this section the Corporation may enter any slaughter-house which is situate outside the city but within a circle having a radius of ten miles from the council house for the purpose of inspecting any carcase or any part thereof intended for sale or consumption in the city with the consent of the local authority concerned subject to the right of the Corporation to appeal to the Ministry of Health for such power of inspection.

(5) Before making any such byelaws the Corporation shall give not less than one month's notice to the Bristol Master Butchers' Association of the Corporation's intention to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and the Corporation shall confer with the said association thereon before they submit them to the Minister of Health for confirmation and such association shall be entitled to make representations to the Minister of Health with regard thereto.

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(6) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1925 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

Part X.

Slaughter-houses.

Provision of public slaughter-houses and prohibition of private slaughter-houses thereafter.

104.—(1) At any time after the passing of this Act the Corporation may—

(*a*) acquire by agreement any premises within the city used for the purpose of slaughtering cattle sheep goats or swine (hereinafter referred to as a "slaughter-house") and the interest or interests of any owner lessee or occupier of such premises:

(*b*) agree with the owner lessee and occupier of any slaughter-house for the abolition of slaughtering therein on such terms and conditions as may be arranged between the parties.

(2) At any time after the expiration of three years from the passing of this Act and after the Corporation have provided an adequate slaughter-house in a convenient position (to the satisfaction of the Ministry of Health) and after the expiration of six months from the date of publication by the Corporation in a local newspaper circulating in the city of notice to that effect no person shall slaughter in the way of trade any cattle sheep goats or swine within the city except in slaughter-houses provided by the Corporation but this restriction shall not apply to the slaughtering on premises by the owner lessee or occupier thereof of any cattle sheep goats or swine belonging to him and not slaughtered for the purpose of trade or by a farmer on premises occupied by him for agricultural purposes only and if any person acts in contravention of this section he shall be liable for each offence to a penalty not exceeding five pounds.

(3) The Corporation shall pay or tender compensation to the owner and occupier of—

(*a*) any slaughter-house registered prior to the passing of the Public Health Act 1875; and

(*b*) any slaughter-house the licence in respect of which is not required to be renewed periodically

which is closed under the provisions of this section and the amount of such compensation shall in case of difference be settled as cases of disputed compensation are settled under the Lands Clauses Acts and the provisions of those Acts shall apply accordingly Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in respect of the closing of such slaughter-house.

(4) The fees and charges to be demanded and received by the Corporation in respect of the use of any slaughter-house provided by them or of any convenience connected therewith shall be regulated by byelaws to be approved by the Minister of Health and the Corporation may make byelaws accordingly Provided that the Corporation shall have power to charge for any slaughter-house let at a weekly monthly or other rent such sum as may be agreed upon by the Corporation and the renters.

(5) Nothing in this section shall interfere with the operation or effect of the Diseases of Animals Acts 1894 to 1925 or of any order or licence of the Minister of Agriculture and Fisheries made or granted thereunder.

Power to close slaughter-houses if injurious to public health.

105.—(1) (*a*) The Corporation may by written notice to the owner and occupier of any registered slaughter-house within the city which from its situation or construction is in the opinion of the Corporation injurious or dangerous to the public health require that the premises shall cease to be used as a slaughter-house on and after such date (not being less than six months from the service of such notice) as may be specified in the notice and no person shall after such date slaughter in the way of trade any cattle on the said premises;

(*b*) Provided that not less than three months before making any such requirement in the case of any slaughter-house which from its construction is in their opinion injurious or dangerous to the public health the Corporation shall give notice in writing to the owner or occupier thereof specifying the respects in which such slaughter-house is in their opinion so injurious or dangerous and also specifying their requirements in regard thereto and if within the said period of three months the owner or

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occupier of such slaughter-house or either of them shall have removed the grounds of objection thereto no such written notice as is first above mentioned shall be given to them by the Corporation;

(c) Provided also that any such owner or occupier may within one month after receiving any such notice in writing from the Corporation object thereto on the ground that the requirements contained therein are unreasonable and unnecessary in the interests of public health and any such objection shall failing agreement between the Corporation and the owner or occupier making the same be determined on appeal to the Minister of Health by that Minister and unless and until that Minister shall have determined that the said requirements are reasonable and necessary no such written notice as is first above mentioned shall be given to the owner or occupier of the slaughter-house in question.

(2) The Corporation shall make compensation to the owner and occupier of any registered slaughter-house which shall cease to be used for slaughtering under subsection (1) of this section such compensation in case of difference to be settled in manner provided by the Public Health Act 1875 Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in pursuance of this section.

(3) If any person acts in contravention of the provisions of subsection (1) of this section he shall be liable for each offence to a penalty not exceeding five pounds.

Part XI.

Infectious Disease.

Power to close Sunday schools and exclude children from entertainments.

106.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a

specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

Restriction on attendance of children at Sunday schools and places of assembly when infectious disease prevails.

107.—(1) No person over the age of sixteen years who has the custody charge or care of a child who is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or any school medical officer of the Corporation shall permit such child to attend any Sunday school or place of public entertainment or assembly in the city without having procured from the medical officer or any such school medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

Notice to be given of infectious disease.

108. Any parent or other person liable to maintain a child in attendance at a school who is aware of or has reason to suspect the occurrence of any infectious disease in any person residing with such parent or other person and who fails forthwith to notify such occurrence to the head teacher of the school shall be liable to a penalty not exceeding twenty shillings:

Provided that in any proceeding under this section a certificate purporting to be under the hand of the head teacher of an elementary school a continuation school or any other school under the control of the Corporation stating that he has or has not received any notification as required under this section shall be evidence of the

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facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

Further powers as to removal of infected persons to hospital.

109. The powers of the Corporation under the Public Health Act 1875 shall be deemed to include a power to remove a person suffering from any dangerous infectious disorder to a hospital or place for the reception of the sick without an order of a justice in any case in which the person proposed to be removed or the parent or guardian or other person having the custody charge or control of such person consents to such removal.

Part XII.

Street Trading.

Registration of street traders.

110.—(1) From and after the first day of January one thousand nine hundred and twenty-seven it shall not be lawful for any person to sell or expose or offer for sale any article or thing from or upon any barrow cart stall or other receptacle in any street in the city unless he shall have registered with the Corporation his name and address and a general description of the business which he carries on or intends to carry on.

(2) (*a*) The Corporation shall issue free of charge to each person registered under this section a certificate of such registration containing the name and address of the person registered and the nature of the business which he carries on or intends to carry on as registered with the Corporation;

(*b*) Every person registered under this section shall carry his certificate of registration with him while engaged in selling or exposing or offering for sale any article or thing from or upon any barrow cart stall or other receptacle in the city and shall while so engaged produce such certificate to any police constable being in uniform or provided with a warrant upon being required so to do;

(*c*) Any person failing to comply with any requirement under paragraph (*b*) of this subsection shall be liable to a penalty not exceeding ten shillings.

(3) If any person registered under this section makes any change in his name or address or the nature

of the business which he carries on as registered with the Corporation he shall forthwith give to the Corporation notice in writing of such change.

(4) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(5)—(*a*) A person holding a pedlar's certificate or a hawker's licence shall not be required to effect registration under this section;

(*b*) A person carrying on the business of a newsvendor shall not be required to effect registration under this section in respect only of the carrying on by him of that business.

(6) Nothing in this section or done thereunder shall exempt any person from or shall alter or affect any of the provisions of any enactment relating to obstruction of traffic in highways.

Part XIII.

Hackney Carriages and Police.

Inspection and certification of taximeters.

111.—(1) The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage regularly plying for hire within the city to be tested and inspected and they may also require any taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as the Corporation may prescribe and no such taximeter or other similar apparatus shall be used or be continued in use unless the same be certified to register correctly and the expenses of such testing and certificate not exceeding five shillings in any one year shall be borne by the owner of the hackney carriage.

(2) The Corporation shall issue a certificate in respect of any taximeter found by them to register correctly and such certificate shall be dated with the date upon which such taximeter was last tested and inspected.

(3) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit

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the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

Powers to grant occasional licences.

112. An occasional licence for a public vehicle to ply for hire may be granted by the Corporation to be in force for such day or days or other periods less than one year as may be specified in the licence.

Power to impose tests on motor drivers.

113. No person shall be entitled to drive a motor vehicle licensed by the Corporation as a hackney carriage or omnibus unless he shall have satisfied the Corporation of his ability to drive and for that purpose the Corporation may impose such reasonable tests as they may think fit.

Regulations for controlling traffic.

114.—(1) The Corporation may from time to time make regulations prescribing within the central area—

(*a*) the routes to be taken by all vehicles or by any specified class or description of vehicle either generally or during specified hours;

(*b*) streets in which vehicular traffic shall pass in one specified direction only either generally or during specified hours;

(*c*) the stands to be occupied exclusively by omnibuses of any specified class or description or used on any specified route or running according to a published time table such stands to be fixed with due regard to the centres of collection and distribution of omnibus and other traffic;

(*d*) the time during which any omnibus shall be allowed to remain at any one stand; and

(*e*) the places at which by reason of danger to the public or congestion of traffic omnibuses shall not stop to take up or set down passengers:

Provided that any regulation made under paragraph (*a*) of this subsection shall not apply to any vehicle ordinarily engaged in the delivery or collection of goods at or from any premises within the central area whilst so engaged and that any regulation made under paragraph (*a*) or paragraph (*b*) of this subsection shall not apply to any tramcar or light railway car.

(2) Before any regulations made under this section shall come into force the Corporation shall submit the same to the Minister for his approval and shall give notice of the subject matters of the regulations by advertisement in a local newspaper circulating in the city and in the London Gazette and in such other manner (if any) as the Minister may direct The said notice shall name a place where copies of the regulations can be obtained free of charge and shall state a date (not being less than twenty-one days from the date of the notice) by which and the manner in which any person aggrieved by the regulations may make representations thereon to the Minister and that any such person shall at the same time send a copy of his representations to the town clerk.

(3) The Minister shall consider any regulations submitted to him by the Corporation and any representations thereon which may be duly made and may approve the regulations with or without modifications or may disapprove the same.

(4) Before approving any regulations the Minister may and if any representation is duly made and is not withdrawn shall (unless the representation appears to him to be frivolous) direct a local inquiry to be held in accordance with the provisions of section 20 of the Ministry of Transport Act 1919 and the Corporation shall pay to the Minister any expenses incurred by him in relation to any such inquiry including the expenses of any witnesses summoned by the person holding the inquiry and a sum to be fixed by the Minister for the services of such person.

(5) The Corporation shall give at least fourteen days' notice of the intention to hold such local inquiry with particulars of any proposed regulations by advertisement in a local newspaper circulating in the city and shall also give similar notice in writing to each person who has duly made any representation and has not withdrawn the same.

(6) The regulations shall take effect as approved by the Minister and shall come into force on a date to be fixed by him.

(7) The Corporation shall cause notice to be given of all regulations approved under this section by advertise-

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ment in a local newspaper circulating in the city and otherwise in such manner as may be prescribed by the Minister.

(8) The Minister on the application of any company body or person appearing to him to be sufficiently interested and alleging that any regulation made under this section is unsuitable for the traffic requirements of the city may if satisfied as to the correctness of such allegation and after considering any representations made to him by the Corporation modify or extend the regulation to which the application relates.

(9) A copy of any regulations approved under this section (with any modifications or extensions made by the Minister as aforesaid) purporting to be signed by the town clerk and certified by him to be a true copy and to have been duly approved shall be evidence (until the contrary is proved) in all legal proceedings of the due making approval and existence of such regulations without further or other proof.

(10) Any person who shall wilfully contravene any regulation made and approved under this section (subject to any modification or extension made by the Minister as aforesaid) shall be liable to a penalty not exceeding forty shillings.

(11) In this section—

(*a*) "The central area" means the portion of the city comprised within a circle having a radius of one mile from the council house;

(*b*) "Stand" means a place where omnibuses may stop a longer time than is necessary for the taking up and setting down of passengers desirous of entering or leaving the same;

(*c*) "The Minister" means the Minister of Transport; and

(*d*) "Specified" means specified in any regulations made or approved under this section.

Power to stop traffic on occasions of emergency.

115. It shall be lawful for the Corporation at all times of public processions rejoicings or illuminations or on emergency to cause barricades to be erected across any of the streets of the city and to continue

the same for such time as may be deemed reasonably necessary and any person who wilfully removes any such barricade or any part thereof shall be liable to a penalty not exceeding forty shillings. A.D. 1926.

Notice of processions to be given.

116.—(1) Any person or persons intending to organise or form a public or ceremonial procession or a circus procession or processions of wild animals through the streets of the city (other than a public or ceremonial procession which is regularly held through such streets) shall give written notice thereof and of the route proposed to be taken and of the time at which it will take place to the chief constable of the city by leaving such notice at the central police station in the city twenty-four hours at least (exclusive of Sundays) previous to the time fixed for such procession to pass through the streets.

(2) If any such procession passes through the streets of the city without such notice having been previously given or otherwise than in accordance with such notice the person or persons organising or conducting such procession or any or either of them shall be liable to a penalty not exceeding five pounds each.

Part XIV.

Extension of City Boundaries.

Extension of boundaries of existing city.

117. The boundaries of the existing city are hereby extended so as to comprise and the city shall accordingly comprise in addition to the existing city the following areas namely :—

(1) That part of the parish of Henbury in the rural district of Thornbury in the county of Gloucester which is defined in Part 1 of the Eighth Schedule to this Act ; and

(2) That part of the parish and urban district of Portishead in the county of Somerset which is defined in Part 2 of the said schedule ;

and the said parts of parishes so added to the existing city shall for all purposes be detached from the said counties respectively and from the jurisdiction and powers of the county councils and of the justices of the peace sheriffs coroners and officers of the said counties respectively and shall for all purposes form part of the city and county and parish of Bristol.

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The city as extended is delineated on the city plan and consists of the existing city and the areas described in the said Eighth Schedule to this Act and if there be any discrepancy between the city plan and the said description the latter shall prevail Notice of this provision shall be set forth on the city plan.

Deposit of city plan.

118.—(1) The city plan shall within two weeks after the passing of this Act be deposited as to one copy in the Office of the Clerk of the Parliaments at the House of Lords as to another copy in the Private Bill Office of the House of Commons and as to the third copy with the town clerk at his office.

(2) A copy certified by the town clerk of those parts of the city plan which comprise the added area and so much of the existing city as is necessary for identification of the added area shall be sent as soon as may be after the said deposit of the city plan to the Minister of Agriculture and Fisheries to the Minister of Health to the Inland Revenue Department to the Commissioners of Customs and Excise to the Postmaster-General to the Board of Trade to the Electricity Commissioners and to the Registrar-General.

Copies of deposited city plan to be evidence.

119. Copies of the city plan deposited with the town clerk or any extract therefrom certified by him to be true shall be received by all courts of justice and elsewhere as prima facie evidence of the contents of such plan and such plan shall at all reasonable times be open to the inspection of persons liable to rates imposed by the Corporation and all persons so liable shall be entitled to a copy of or extract from such plan certified by the town clerk on payment of a reasonable fee for every such copy or extract All fees so received shall be carried to the borough fund.

Detaching added area from jurisdiction of certain authorities.

120. From and after the commencement of this Part of this Act—

(*a*) the part of the parish and contributory place of Henbury comprised in the added area shall be detached from the district jurisdiction and powers of the Thornbury Council and shall cease to form part of that parish and contributory place;

(*b*) the part of the parish and urban district of Portishead comprised in the added area shall be detached from the district jurisdiction and powers of the Portishead Council and shall cease to form part of that parish and urban district.

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County councillors and electoral divisions.

121. Subject to the provisions of section 54 of the Local Government Act 1888—

(1) the Thornbury electoral division of the county of Gloucester and the Portishead electoral division of the county of Somerset as respectively diminished by the inclusion in the city of the added area shall continue to be electoral divisions of the said counties and the persons who immediately prior to the commencement of this Part of this Act are the county councillors representing the said divisions respectively shall be deemed from and after that date to represent the said divisions as so diminished;

(2) no county alderman or county councillor in office immediately before the commencement of this Part of this Act shall be deemed to lose his qualification by reason of the inclusion of the added area in the city by this Act.

Continuing urban and rural district councils and guardians.

122.—(1) The Thornbury Council and the Portishead Council shall respectively continue and shall be deemed to have been elected for and shall be the rural district council for the rural district of Thornbury and the urban district council of the urban district of Portishead respectively as diminished by this Act.

(2) The persons who at the commencement of this Part of this Act are respectively rural district councillors elected to represent the said parish of Henbury on the Thornbury Council and members of the Portishead Council and guardians of the Long Ashton Union elected to represent the parish of Portishead shall until the next election of rural district councillors or urban district councillors or guardians (as the case may be) after the commencement of this Part of this Act continue to represent as such councillors or guardians the said parish of Henbury and the urban district and parish of

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Portishead as diminished by this Act and shall not during that period cease to be qualified so to continue by reason of the alteration of parishes made by this Part of this Act.

Continuing Henbury parish council.

123. The Henbury Council shall continue and shall be deemed to have been elected for and shall be the parish council for the parish of Henbury as diminished by this Act and the persons who are at the commencement of this Part of this Act parish councillors for the said parish shall until the next election of parish councillors after the commencement of this Part of this Act continue to be parish councillors for the said parish as diminished by this Act and shall not during that period cease to be qualified so to continue by reason of the alteration of parishes made by this Part of this Act.

Urban powers &c. in excluded part of parish of Henbury.

124. All the powers rights duties capacities liabilities and obligations of an urban authority and all the powers in relation to the chargeability of expenses with which the Thornbury Council are invested in pursuance of any Order issued by the Local Government Board or the Minister of Health under the Public Health Acts in respect of the parish of Henbury shall be deemed to vest in and attach to that council in respect of the said parish as altered by this Part of this Act.

Authority of Corporation &c. extended.

125. Except as by this Act otherwise expressly provided all the jurisdiction powers rights privileges authorities immunities and duties of the Corporation as a municipal body and of the council and any committee thereof acting in the execution of such enactments as are at the commencement of this Part of this Act in force within the existing city and of the Corporation as the urban sanitary authority for the district or any committee thereof and of the Corporation as the burial board and of the Corporation as the education authority shall extend to and throughout the city and all charters enactments byelaws orders regulations lists of tolls tables of fees and payments and scales of charges at the commencement of this Part of this Act in force within and applicable to the existing city or to the burgesses or inhabitants thereof shall subject to the provisions of this Act extend and apply to the city and the inhabitants and burgesses thereof until or except in so far as any of such byelaws orders regulations tolls fees payments or charges may be repealed or altered.

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Jurisdiction &c. of lord mayor recorder justices &c.

126. The jurisdiction powers authorities rights privileges and duties of the lord mayor the quarter sessions the sheriff the recorder the town clerk the clerk of the peace the coroner the overseers of the poor the local courts and the justices of the peace appointed for the existing city and parish of Bristol and of all constables officers and servants of the existing city and parish of Bristol shall extend to and throughout the city.

Exemption from liability to county and other rates.

127. Subject to the provisions of this Act and of the Local Government Act 1888 and of the Local Government Act 1894 no lands or other property in the city shall be liable to contribute to any county or other rates or contribution made after the commencement of this Part of this Act by or in accordance with the precept of any board authority or person other than the Bristol guardians the overseers of the poor of the parish of Bristol and the Corporation but orders or precepts respecting such rates and matters connected therewith made before the commencement of this Part of this Act shall be as valid in law and all arrears of any such rates existing at the commencement of this Part of this Act may be enforced collected and recovered as if this Act had not been passed.

As to property of three councils.

128. All property and liabilities which immediately before the commencement of this Part of this Act are vested in or attach to the three councils respectively in relation exclusively to the added area or any part thereof shall by virtue of this Act be transferred to and vest in and attach to the Corporation as urban sanitary authority and any property and liabilities vested in or attaching to the three councils respectively in relation to the added area or any part thereof conjointly with any other area shall be a matter for adjustment under section 62 of the Local Government Act 1888.

Saving for actions contracts &c.

129. No alteration effected by this Part of this Act shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which at the commencement of this Part of this Act is pending or existing by or against the three councils or any of them or any contract deed bond agreement or other instrument (subsisting at the commencement of this Part of this Act) entered into or made

A.D. 1926. by the said councils respectively or their predecessors Provided that:—

(i) any action cause of action or proceeding which at the commencement of this Part of this Act is pending or existing by or against the three councils or any of them in relation exclusively to the added area or any part thereof may be continued prosecuted and enforced by or against the Corporation; and

(ii) all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Part of this Act) entered into or made by the three councils respectively or any of them or their predecessors in relation exclusively to the added area or any part thereof may be continued and enforced as fully and effectually as if instead of the three councils or their predecessors the Corporation had been a party thereto.

Byelaws &c. annulled.

130. All byelaws rules and regulations and all orders (other than precepts) made by the three councils respectively or by the county councils respectively in any capacity under any Act of Parliament and in force at the commencement of this Part of this Act shall cease to be in force in the added area or any part thereof except as regards any work which has been begun before such commencement or as regards any work which has not been so begun but for which plans have been approved before such commencement by the Portishead Council or the Thornbury Council or have been sent to the surveyor or clerk of those councils respectively one month at least before such commencement and have not been disapproved by the said councils respectively but all penalties incurred under any such byelaw rule regulation or order and all forfeitures which have ensued by reason thereof may be enforced and recovered by the Corporation in like manner in all respects as the same respectively might have been enforced and recovered by the three councils respectively in case this Act had not been passed and shall be carried by the Corporation to the credit of the district fund.

Education.

131. Any school attendance byelaws in force in the existing city immediately before the appointed day

shall from and after that day apply to the city until revoked or altered and from and after that day any byelaws then in force in any part of the added area shall cease to be in force.

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Orders under Shop Hours Act 1904 or Shops Acts 1912 to 1920.

132. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the commencement of this Part of this Act in any area affected by this Part of this Act shall subject to the provisions of such Acts remain in force and apply to the area to which it applied immediately before such commencement.

Orders under Wild Birds Protection Acts.

133. Any order under the Wild Birds Protection Acts 1880 to 1908 which is in force at the commencement of this Part of this Act in the existing city shall extend to the added area and any order under those Acts which is then in force in the said counties or either of them shall cease to apply to the added area.

Officers to cease to hold office &c.

134. From and after the commencement of this Part of this Act all officers of the three councils respectively shall cease to hold their respective offices and employment so far as relates to the added area but every overseer assistant overseer or other parish officer in office immediately before the commencement of this Part of this Act shall hold office and act for the parishes of Henbury and Portishead respectively as altered by this Part of this Act.

Compensation to officers of three councils &c.

135.—(1) Every officer in office at the commencement of this Part of this Act who by virtue of this Act or of anything done in pursuance or in consequence thereof shall suffer any direct pecuniary loss shall be deemed to be an officer entitled to compensation within the meaning of section 120 of the Local Government Act 1888 and that section shall apply accordingly with the substitution of the Corporation for the county council and the Minister of Health for the Treasury Such compensation may (at the option of the Corporation) be by way of annuity or by payment of a sum in gross.

(2) Any such compensation shall be paid by the Corporation.

(3) No officer shall be entitled to receive compensation under this Part of this Act for pecuniary loss and

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(4) For the purposes of this section the expression "officer" includes a servant and any person whose remuneration is paid by a local authority or standing joint committee of a county.

Adjustment of property and liabilities.

136.—(1) Section 62 of the Local Government Act 1888 shall apply and have effect as if the extension of the existing city effected by this Part of this Act had been effected by an Order made by the Minister of Health under the first-mentioned Act and confirmed by Parliament.

(2) For the purposes of the application of the said section 62 to any adjustment which may become necessary in consequence of this Part of this Act that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "council" included any authority affected by this Part of this Act or by anything done in pursuance thereof and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister of Health may sanction Provided that where an authority affected by this Part of this Act or anything done in pursuance thereof are the board of guardians of a poor law union the said section 62 shall apply with respect to any necessary adjustment with the modifications specified in the First Schedule to the Poor Law (Dissolution of School Districts and Adjustments) Act 1903.

Adjustments consequent on amalgamations

137. For the purposes of the application of section 62 of the Local Government Act 1888 to any adjustments which may become necessary in consequence of this Part of this Act so far as it relates to the

amalgamation of the added area or any part thereof with the existing city that section shall have effect— A.D. 1926.

with existing city.

(*a*) as if the overseers of the parishes the boundaries of which are altered by this Part of this Act or any persons who may be substituted for those overseers by the Minister of Health were within the meaning of the said section as applied by this section authorities affected by this Part of this Act;

(*b*) as if the poor rate or any other rate leviable in pursuance of the said section as applied by this section were substituted for any fund mentioned in the section; and

(*c*) as if for subsections (6) and (7) of the said section there were substituted the following subsections (that is to say):—

"(6) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part of a parish only the agreement or award may authorise the making of such a separate rate as if it were a poor rate and as if part of the parish on which it is to be levied were a whole parish.

"(7) Any sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purposes as the Minister of Health may authorise or direct."

As to financial adjustments.

138. The Local Government (Adjustments) Act 1913 shall have effect as if in paragraph (2) of Part II. of the Schedule to that Act for the words "the average annual increase of burden multiplied by fifteen" there were substituted the following words "the average annual increase of burden multiplied—

(*a*) so far as that increase of burden is attributable to the cost of maintenance of roads by twenty-one; and

(*b*) in other cases by fifteen."

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As to charities for benefit of added area.

139. All the real and personal property at the commencement of this Part of this Act vested in the three councils or any of them or in any trustees committee or society for charitable purposes for the benefit of the parish of Henbury or the urban district of Portishead shall continue to be held by the parties in whom such property was so vested and (subject and according to the trusts applicable thereto) to be administered and applied for the benefit of the said parish and urban district respectively (including the portions thereof comprised in the added area) and of the inhabitants thereof as if this Act had not been passed.

Corporation property &c. vested for benefit of city.

140. Subject to the provisions of this Act all the real and personal property at the commencement of this Part of this Act vested in the Corporation in any capacity or in any trustees committee or society for educational or charitable purposes for the benefit of the existing city are hereby as from that date vested in the Corporation or such trustees committee or society as the case may be for the benefit of the city and all rights privileges benefits and advantages (except the parliamentary franchise) possessed or enjoyed by the burgesses and inhabitants of the existing city including those possessed or enjoyed under any charitable trust shall be and the same are hereby extended to the burgesses and inhabitants of the city but subject to all debts liabilities interests and obligations affecting the same or any part thereof or the Corporation or such trustees committee or society in respect thereof.

Save as aforesaid nothing in this section shall affect the right to the benefit of any charity or shall alter the defined charitable purposes (if any) to which any property is by law applicable at the passing of this Act.

Insurance committee.

141.—(1) The Minister of Health may by order at any time after the commencement of this Part of this Act make such provisions as appear to him to be necessary for transferring to the insurance committee for the city such property rights and liabilities of the insurance committees for the said counties respectively as relate to persons resident in the added area.

(2) An order made under this section may authorise the insurance committees for the said counties respec-

tively to continue to act as insurance committees for the parts of parishes comprised in the added area until such date not being later than the thirty-first day of December one thousand nine hundred and twenty-seven as may be specified in the order and may for that purpose postpone the operation of this Part of this Act so far as relates to the rights and duties of the respective insurance committees for the said counties and the city until the date so specified and may provide for such financial adjustments and may contain such other consequential and supplementary provisions as may appear to the Minister of Health necessary or expedient.

(3) An order under this section shall have effect as if enacted in the National Insurance Act 1924 and may be revoked revised or amended by an order made in like manner as the original order.

(4) Subject to any order under this section the persons who immediately before the commencement of this Part of this Act are members of the respective insurance committees for the said counties and the existing city shall be deemed to have been appointed or elected as members of the respective insurance committees for the said counties as altered by this Part of this Act and the city.

Valuation lists.

142.—(1) Until a new valuation list is made for the parish of Bristol those portions of the valuation lists for the parish of Henbury and the parish of Portishead which immediately before the commencement of this Part of this Act related to hereditaments situate within the added area shall be deemed to form part of the valuation list in force at the commencement of this Part of this Act for the parish of Bristol and shall continue to relate to the said hereditaments.

(2) Until new valuation lists are made for the parish of Henbury and the parish of Portishead respectively those portions of the lists which now relate to the hereditaments situate within the parts of those parishes not comprised in the added area shall respectively be the valuation lists for those parishes.

County rate basis.

143.—(1) Subject to any future revision the basis or standard of the county rate for the said counties respectively shall be altered by the deduction from the

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amount appearing therein as the net annual value of the property in the parish of Henbury and the parish of Portishead of such a sum in each case as will represent the net annual value of the property in the parts of the said parishes comprised in the added area.

(2) For the purposes of this section the net annual value of the agricultural land in the part of a parish comprised in the added area shall in each case be the amount which bears the same relation to the net annual value of agricultural land in the parish as constituted immediately before the commencement of this Part of this Act (in this section referred to as "the existing area") as the total rateable value of the agricultural land in the part of the existing area which is comprised in the added area bears to the total rateable value of the agricultural land in the existing area.

(3) For the purpose of ascertaining the net annual value of hereditaments (not being agricultural land) in the added area subsection (2) of this section shall apply with the substitution for "agricultural land" of "hereditaments other than agricultural land."

(4) The amounts shown in the basis or standard of the county rate for the said counties respectively of the assessable value of the property in the parish of Henbury and the parish of Portishead shall be reduced so as to correspond with the reductions in the net annual value of property made under this section.

(5) In this section "net annual value" and "assessable value" mean the net annual value and assessable value according to the basis or standard of the county rate of the said counties respectively and "total rateable value" means the total rateable value according to the valuation lists of the parish of Henbury or the parish of Portishead (as the case may be) last in force before the basis or standard is altered in pursuance of this section.

(6) For the purpose of the preparation of any order for county contributions to be issued by the county councils respectively after the commencement of this Part of this Act this section shall operate from the date of the passing of this Act.

As to jury service.

144. For the purpose of summoning jurors and of jury service any parish affected by this Part of this Act

shall be deemed to continue unaltered until a new jurors' book relating to the parish as altered comes into force.

As to application of County and Borough Councils (Qualification) Act 1914.

145. For the purposes of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the city.

Transfer of lists of prisoners &c.

146. Lists of prisoners depositions writs process and particulars and all records and documents relating to or to be executed in connection with any prosecution action or proceedings pending or existing at the commencement of this Part of this Act and appertaining to the added area shall be delivered turned over or transferred and signed in like manner in all respects (as nearly as circumstances will admit) as is required to be done upon a new sheriff coming into office in like manner as if the sheriff of the city were as respects the added area the new sheriff in succession to the sheriffs of the said counties respectively but except so far as may be inconsistent with the foregoing provisions every person committing an offence in the added area before the commencement of this Part of this Act shall be tried adjudicated on and dealt with as if this Act had not been passed.

Agreements between standing joint committees and Corporation as to policing.

147. The standing joint committees or either of them on the one hand and the Corporation on the other hand may at any time and from time to time agree for the policing of any part or parts of the said counties respectively or of the city by the respective police forces of the said counties and the city as may be agreed upon and for the payments to be made by the Corporation or the standing joint committees as the case may be for any such policing by the city or county police forces.

Adjustment of financial relations between city and counties and county boroughs.

148.—(1) In any case where the extension of the existing city by this Act affects the distribution between the said counties respectively on the one hand and the city on the other hand or between the said counties or either of them and the city on the one hand and any other county borough on the other hand of the moneys payable out of the local taxation account or by the Postmaster-General in pursuance of the Local Government Act 1888 and the Local Taxation (Customs and Excise) Act 1890 and of the Roads Act 1920 (as amended by any subsequent Act and as affected by any Order in

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Council) or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution or financial relations or questions equitable adjustments may be made between the areas interested.

(2) Any such adjustment as is authorised by subsection (1) of this section may be made by agreement between the authorities affected and if such agreement has not been made before the thirtieth day of September one thousand nine hundred and twenty-seven then on the application of any such authorities the Minister of Health may if he thinks fit make or appoint an arbitrator to make the adjustment.

(3) In any case in which an agreement for equitable adjustments as aforesaid has not been made the provisions of the Local Government Act 1888 relating to adjustments between administrative counties and county boroughs shall apply with the necessary modifications and the Minister of Health or an arbitrator appointed by him (as the case may be) shall be substituted in those provisions for the Commissioners appointed under the Local Government Act 1888 and notwithstanding anything contained in that Act or in this Act any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the said Minister be deemed to be made by him otherwise than as an arbitrator and any arbitrator appointed by him shall be deemed to be an arbitrator within the meaning of section 62 of the Local Government Act 1888 and the provisions of that Act shall apply accordingly:

Provided that—

(*a*) In lieu of subsection (6) of section 61 of the Local Government Act 1888 subsections (1) and (5) of section 87 of that Act as amended by the Fees (Increase) Act 1923 shall apply to any inquiries which may be directed by the Minister under this section and to the cost of those inquiries; and

(*b*) Subsection (6) of section 32 of the Local Government Act 1888 shall apply to any agreement or award made under this section.

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Addition of added area to existing wards of city and parish.

149.—(1) The city and the parish of Bristol shall subject to the provisions of subsection (2) of this section and of the other provisions of this Act continue to be divided into twenty-three wards having the same boundaries and names and the same number of councillors and guardians as they respectively have at the passing of this Act.

(2) As from the commencement of this Part of this Act the portion of the parish of Henbury which is by this Act added to the existing city shall be added to and form part of the Westbury-on-Trym Ward of the city and of the parish of Bristol and the portion of the urban district of Portishead which is by this Act added to the existing city shall be added to and form part of the Bedminster West Ward of the city and of the parish of Bristol.

As to alterations of wards under Municipal Corporations Acts.

150. Nothing in this Part of this Act contained shall take away or affect the power to alter the number or boundaries of the wards of the city under the provisions of the Municipal Corporations Acts.

Saving for contribution orders and precepts.

151. Notwithstanding the alterations of areas of any parishes affected by this Part of this Act all contribution orders and precepts made or issued before the commencement of this Part of this Act shall be as valid in law as if this Act had not been passed.

Provisions as to register of electors.

152.—(1) For the purposes of the Autumn Register 1926 so far as relates to the local government electors of the city and of all matters connected with incidental to or consequent upon those purposes the added area shall be deemed to have formed part of the city as from the first day of the qualifying period for the Autumn Register 1926.

(2) In the preparation of the Autumn Register 1926 so far as it relates to any areas affected by this Part of this Act it shall be competent to the registration officer to frame the register in separate parts for each area which will constitute a registration unit from and after the commencement of this Part of this Act instead of in separate parts for each area constituting a registration unit before such commencement.

(3) If the register of local government electors for any electoral area affected by this Part of this Act is not

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so framed as to show the persons entitled to vote at an election or parish meeting to be held for a parish or ward or other voting area—

(*a*) the town clerk in the case of an election for any voting area within the city; and

(*b*) the registration officer of the parliamentary county of Gloucester or Somerset (as the case may be) in the case of an election or parish meeting for any voting area outside the city

shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election or parish meeting.

(4) It shall be the duty of the overseers to render such assistance as may be required by the town clerk or by the registration officer for the purpose of such alteration or re-arrangement.

(5) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary to give effect to the provisions of this Part of this Act and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Settlement and removal of poor.

153. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Part of this Act the following provisions shall have effect (that is to say):—

(1) Every person who at the commencement of this Part of this Act has acquired or is in the course of acquiring a settlement in the parish of Bristol as constituted immediately before the commencement of this Part of this Act (in this section referred to as "the existing parish of Bristol") or in the parish of Henbury or the parish of Portishead by reason of any residence completed or in the course of completion or of any act or of anything done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—

(i) in the existing parish of Bristol; or

(ii) in that part of the parish of Henbury which is comprised in the added area; or

(iii) in the remainder of the said parish of Henbury; or

(iv) in that part of the parish of Portishead which is comprised in the added area; or

(v) in the remainder of the said parish of Portishead

shall be deemed to have acquired or to be in the course of acquiring in the first second and fourth cases a settlement in the parish of Bristol as extended by this Act in the third case a settlement in the parish of Henbury as diminished by this Act and in the fifth case a settlement in the parish of Portishead as diminished by this Act and in each case as if the existing parish or the specified part of the existing parish (as the case may be) were and had always been the parish or a part of the parish in which by virtue of this section the person shall be deemed to have acquired or to be in the course of acquiring a settlement:

(2) Every person who at the commencement of this Part of this Act has acquired or is in the course of acquiring a status of irremovability from the Bristol Union the Thornbury Union or the Long Ashton Union by reason of residence—

(i) in the existing parish of Bristol; or

(ii) in that part of the parish of Henbury which is comprised in the added area; or

(iii) in the remainder of the said parish of Henbury; or

(iv) in that part of the parish of Portishead which is comprised in the added area; or

(v) in the remainder of the said parish of Portishead

shall be deemed to have acquired or to be in the course of acquiring a status of irremovability in the first second and fourth cases from the Bristol Union by reason of residence in the parish of Bristol as extended by this Act in the third case from the Thornbury Union by reason of residence in the parish of Henbury and in the fifth case from the Long Ashton Union by reason of residence in the urban district of Portishead.

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Amendment of Portishead and District Electric Lighting Order 1911.

154. As from the commencement of this Part of this Act the portion of the urban district of Portishead which is by this Act added to the existing city shall be added to and form part of the area of supply under the Corporation's Electric Lighting Order and shall cease to be within the area of supply under the Portishead and District Electric Lighting Order 1911.

For protection of Seymour Williams.

155.—(1) Until the death resignation or removal from office of Seymour Williams the present holder of the office of coroner for the Lower Division of the county of Gloucester (in this section referred to as "the county coroner") nothing in this Part of this Act contained shall restrict or affect the powers duties jurisdiction or emoluments of the county coroner but for the purposes of this section so much of the said Lower Division as is comprised in the added area shall be deemed to continue to be within the district of the county coroner as if the same had remained part of the county of Gloucester and the coroner for the city shall not have any powers duties or jurisdiction in the said part of the added area.

(2) From and after the commencement of this Part of this Act the Corporation shall pay to the county coroner in respect of his services as coroner in the said part of the added area such fees or remuneration and expenses as would but for this section be payable by them to the coroner for the city for performing the duties of coroner in respect of the said part of the added area The amount of the said fees or remuneration and expenses so paid by the Corporation shall from time to time be deducted from the amounts which would otherwise have been payable to the county coroner by the county council of the said county in respect of the whole area within his jurisdiction The fees allowances and disbursements paid and made by the county coroner on the holding of an inquest relating to the said part of the added area shall be in accordance with the statutes relating to coroners and with the schedules made by the Corporation from time to time in pursuance of those statutes.

As to application of certain provisions of Bristol United Gas Light Company's Act 1853.

156. Notwithstanding the provisions of this Part of this Act the provisions of sections 16 18 19 and 32 of the Bristol United Gas Light Company's Act 1853 shall continue to apply and to have effect as if the said provisions of this Act had not been enacted.

157. For the protection of the Bristol Waterworks Company in this section called "the water company" the following provisions shall have effect:—

For protection of Bristol Waterworks Company.

(*a*) Nothing in this Act contained shall deprive the water company of the powers conferred upon them by any Act or Acts of Parliament of laying down maintaining repairing renewing and altering any mains pipes valves hydrants and other apparatus which may be in or under any street which may be temporarily stopped up during the construction of the works by this Act authorised And the water company shall also have access at all times to any such mains pipes valves hydrants and other apparatus for the purpose of controlling and regulating the supply of water to the inhabitants of the said city:

(*b*) The extension of the existing city as by this Act provided shall not nor shall anything in this Act contained extend lessen or in any manner alter or be deemed or construed to extend lessen or alter the limits within which the water company are authorised to supply water but such limits shall remain and continue as if this Act had not been passed.

As to limits of supply of Portishead District Water Company and Portishead Gas Company.

158. Nothing in this Part of this Act shall alter or affect the extent of the limits of supply of the Portishead District Water Company and the Portishead Gas Company respectively as existing immediately before the commencement of this Part of this Act.

As to sewage from part of parish of Henbury.

159.—(1) In this section—

the expression "the council" means the Henbury Council or the Thornbury Council according as the provisions of this section are put into operation by the Henbury Council or by the Thornbury Council; and

the expression "the outside area" means (*a*) that part of the parish of Henbury which is known as Henbury Village and (*b*) that part of the said parish which is known as Coombe Dingle and Bowdens Fields or either of the said parts or any portion thereof respectively:

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Provided that if there shall be any dispute between the Corporation and the council as to the extent of the outside area or of any part thereof such dispute shall be determined on the application of either party by the Minister of Health.

(2) If at any time after the commencement of this Part of this Act the council make provision for the sewering of the outside area and give to the Corporation notice in writing of their desire that the sewage from the outside area shall be admitted into the sewerage system of the city for disposal the Corporation shall as soon as practicable after the receipt of such notice receive into the sewers of the Corporation as existing at the date of such notice and dispose of such sewage upon such terms and conditions as may be agreed between the Corporation and the council or (in the event of disagreement) as shall be settled by the Minister of Health:

Provided that nothing in this section shall be deemed to require the Corporation to construct any new sewer or extend or enlarge any existing sewer or to execute any other works and that if by reason of the user or intended user of the sewers of the Corporation for the reception and disposal of the sewage from the outside area the Corporation deem it necessary to enlarge any existing sewer or sewers the council shall repay to the Corporation the expense reasonably incurred by them in so doing and in case of dispute the amount to be so repaid shall be determined by the Minister of Health:

Provided also that any sewers or other works which may have to be constructed within the city for the purpose of connecting any sewers in the outside area with the existing sewers of the Corporation shall be constructed by and at the expense of the council and shall be laid underground and constructed in accordance with plans and sections previously submitted to and approved by the Corporation and under the supervision and to the reasonable satisfaction of their engineer.

Ecclesiastical parishes and parliamentary areas not to be affected.

160. This Part of this Act shall not alter any area for ecclesiastical purposes or the area of any parliamentary borough or of any parliamentary county or of any division thereof.

161. Nothing in this Part of this Act shall alter or affect the provisions of the Rating and Valuation Act 1925.

Saving for Rating and Valuation Act 1925.

162. Nothing in this Part of this Act contained shall be deemed to limit or affect the powers of the Minister of Health under the Acts relating to the relief of the poor or the powers of the Secretary of State or the said Minister or of the county councils or of the Corporation under the Local Government Acts.

Saving for Minister of Health.

163.—(1) Nothing in this Part of this Act shall affect land tax.

Saving for land tax and income tax.

(2) For the purposes of income tax the provisions of the sections of this Act of which the marginal notes are respectively "Extension of boundaries of existing city" and "Detaching added area from jurisdiction of certain authorities" shall not come into operation during any year in which under any enactment the annual value of any property adopted for the purpose of income tax under Schedules A and B for the preceding year is taken as the annual value of that property for the same purpose for that year.

Part XV.

Rating.

164. The purposes to which the borough fund and the district fund or either of them are or is applicable shall include the provision of a working balance or working balances for the payment of current expenses that may be incurred by the Corporation in the exercise or performance of the powers and duties the cost of which is charged on those funds or either of them or (after the date on which the first new valuation list made under Part II. of the Rating and Valuation Act 1925 comes into force) the general rate fund of the city and the Corporation may (in estimating the amount sufficient for those purposes and in ordering the borough rate or the general district rate to be made) include such a sum as they may consider to be necessary for the provision of such working balance.

Rates may include working balance.

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Part XVI.

Financial.

Power to borrow.

165.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the respective funds rates and revenues mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (each of which is referred to as "the prescribed period" in certain of the enactments extended and applied to and for the purposes of this Act by the section of this Act of which the marginal note is "Application of certain provisions of existing Acts") mentioned in the fourth column of the said table (namely) :—

1 Purpose.	2 Amount.	3 Charges.	4 Period for repayment.
	£		
(*a*) (i) For the construction of Works Nos. 1 and 2 by this Act authorised and the works in connection therewith	376,000	The Dock Revenue and the Borough Fund and the Borough Rate	Eighty years from the date or dates of borrowing.
(ii) For the general purposes of Dock Undertaking	150,000		As respects money borrowed for— (*a*) the acquisition of lands a period of eighty years from the date or dates of borrowing; (*b*) any other purpose such period not exceeding eighty years from the date or dates of borrowing as the Minister of Transport may determine.
(*b*) (i) For the construction of Works Nos. 3 4 5 6 and 7 by this Act authorised and the works in connection therewith (ii) For the construction of Work No. 8 by this Act authorised and the works in connection therewith (iii) For the acquisition of lands and easements for the said works	204,043	The Electricity Revenue and the District Fund and the District Rate	(i) Eighty years from the date or dates of borrowing; (ii) Fifty years from the date or dates of borrowing; (iii) Eighty years from the date or dates of borrowing.

1 Purpose.	2 Amount.	3 Charges.	4 Period for repayment.
(*c*) For the acquisition of lands for the erection of municipal buildings	The sum requisite	The Borough Fund and the Borough Rate	Sixty years from the date or dates of borrowing.
(*d*) For the acquisition of land for the enlargement of the Avon View Cemetery	The sum requisite	The Borough Fund and the Borough Rate	Sixty years from the date or dates of borrowing.
(*e*) For the payment of any compensation by this Act authorised or directed to be paid by the Corporation	The sum requisite	The Borough Fund and the Borough Rate	Twenty years from the date or dates of borrowing.
(*f*) For the repayment of the portions (if any) apportioned to the Corporation of the mortgage debts of the County Councils respectively	The amount so apportioned	The Borough Fund and the Borough Rate	Thirty years from the date or dates of borrowing.
(*g*) For the repayment of the portions (if any) apportioned to the Corporation of the mortgage debts of the three Councils respectively	The amount so apportioned	The District Fund and the General District Rate	Thirty years from the date or dates of borrowing.
(*h*) For the payment of interest on moneys borrowed for the foregoing purpose (*a*) (i) until the expiration of five years from the commencement of the work for the purposes of which the moneys were borrowed	An amount not exceeding interest for five years at the rate of five per centum per annum on the moneys borrowed	The Dock Revenue and the Borough Fund and the Borough Rate	A period or periods commencing on the date or respective dates of borrowing and expiring on the date or latest date of expiration of the period or periods for repayment of the moneys the interest on which forms the subject of the loan.
(*i*) For the payment of interest on moneys borrowed for the foregoing purposes (*b*) (i) (ii) and (iii) or any of them until the expiration of five years from the commencement of the work or the acquisition of the land (as the case may be) for the purposes of which the moneys were borrowed	An amount not exceeding interest for five years at the rate of five per centum per annum on the moneys borrowed	The Electricity Revenue and the District Fund and the District Rate	A period or periods commencing on the date or respective dates of borrowing and expiring on the date or latest date of expiration of the period or periods for repayment of the moneys the interest on which forms the subject of the loan.
(*j*) For the payment of the costs charges and expenses of this Act as hereinafter defined	The sum requisite	The Borough Fund and the Borough Rate	Five years from the passing of this Act.

(2) Any part of the said sum of one hundred and fifty thousand pounds which is required for any purpose other than the acquisition of lands shall not be borrowed except with the consent of the Minister of Transport.

(3) (*a*) The Corporation may also borrow such further money as may be necessary for any of the purposes of this Act with the consent as respects moneys

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to be borrowed for the purposes (*a*) (i) and (ii) referred to in the foregoing table of the Minister of Transport as respects moneys to be borrowed for the purposes (*b*) (i) (ii) and (iii) referred to in that table of the Electricity Commissioners and as respects moneys to be borrowed for any other purpose referred to in the said table of the Minister of Health.

(*b*) The Corporation may also borrow such further moneys as may be necessary for the purpose of providing a fund for working capital—

(i) as respects the electricity undertaking with the consent of the Electricity Commissioners;

(ii) as respects any undertaking with respect to which any deficiency is required to be defrayed out of any fund for which a rate is leviable by or under the direction of the Corporation (other than any account relating to the electricity undertaking) with the consent of the Minister of Health;

(*c*) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister or Commissioners with whose consent it is borrowed (which period may if such Minister or Commissioners think fit be a period exceeding sixty years from the date of borrowing) and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby;

(*d*) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister or Commissioners with whose consent the money is borrowed.

(4) The provisions of this section prescribing the fund and rate which may be mortgaged or charged shall not limit the powers conferred upon the Corporation by the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes."

Application of certain provisions of existing Acts of

166. The following sections of the Bristol Corporation Act 1897 (that is to say):—

Section 73 (Power to borrow under Local Loans Act 1875);

Section 74 (Incorporation of sections of Public Health Act 1875); and

Section 76 (As to sinking fund);

1897 and 1901.

and the following sections of the Bristol Docks and Railways Act 1901 (that is to say):—

Section 102 (For protection of lenders);

Section 103 (Priority of existing mortgages); and

Section 104 (Corporation not to regard trusts);

shall extend and apply mutatis mutandis to and in relation to the borrowing of moneys by the Corporation on mortgage under the powers of this Act and the repayment of moneys so borrowed and otherwise in respect of such mortgages as if those sections had been re-enacted in this Act with reference thereto.

Postponement of sinking funds in respect of certain loans.

167. Notwithstanding anything contained in this Act or in any provision of any existing Act applied by this Act the Corporation shall not be required in respect of any moneys borrowed for the purpose (*a*) (i) and the purposes (*b*) (i) (ii) and (iii) or any of them mentioned in the table contained in the section of this Act of which the marginal note is "Power to borrow" and in respect of so much of any moneys borrowed for the purpose (*a*) (ii) mentioned in the said table as is expended in the acquisition of land to make any payment to a sinking fund in respect of such moneys or to provide any instalment for repayment of such moneys until the expiration of five years from the respective dates of the commencement of the work or the acquisition of the land (as the case may be) for the purposes of which the moneys were borrowed.

Section 234 of Public Health Act 1875 not to apply.

168. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Application of moneys borrowed.

169. All moneys borrowed under the provisions of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed for current expenses) to which capital is properly applicable.

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Expenses of execution of Act.

170. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (including all costs charges and expenses of and in relation to the borrowing of any moneys under the powers of this Act and all interest on and all instalments appropriations and sinking fund payments in respect of such borrowed moneys) other than such of them as are properly chargeable to capital and payable out of borrowed moneys shall except as otherwise provided by this Act be paid as follows (that is to say) :—

(1) expenses incurred for the purposes of the dock undertaking out of the dock revenue and if and so far as that revenue proves insufficient for the purpose out of the borough fund and the borough rate :

(2) expenses incurred for the purposes of the electricity undertaking out of the electricity revenue and if and so far as that revenue proves insufficient for the purpose out of the district fund and the general district rate :

(3) expenses incurred for any of the purposes of Parts VII. VIII. IX. X. and XI. out of the district fund and the general district rate :

(4) expenses incurred for all other purposes not otherwise provided for in this Act out of the borough fund and the borough rate.

Use of moneys forming part of sinking and other funds.

171. Notwithstanding anything contained in any previous enactment the Corporation may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals contingency or insurance fund (in this section referred to as "the lending fund") subject to the following conditions :—

(1) The moneys so used shall be repaid to the lending fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding

as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power:

(2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power:

(3) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to the re-borrowing of sums raised under the statutory borrowing power shall apply thereto.

Power to use certain redemption funds in lieu of borrowing.

172. As respects any borrowing power for the time being exerciseable for any of the purposes of the dock undertaking the Corporation may with the consent of the Minister of Transport exercise with reference to the Bristol Corporation perpetual three and a half per centum debenture stock created under the powers of the Bristol Dock Act 1881 the Bristol Dock Act 1884 and the Bristol Dock Act 1886 and to the Bristol Corporation two and a half per centum redeemable debenture stock created under the powers of the Bristol Dock Act 1893 and to any moneys for the time being forming part of the redemption funds set apart for the purposes of those stocks respectively the like powers as are exerciseable under Article 2 of the Stock Regulations (Amendment) 1901 with reference to stock created under the powers of the Stock Regulations 1891 to

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1921 and to any moneys for the time being forming part of the redemption funds set apart for the redemption of such stock and the provisions of the said Article as amended by Article 4 of the Stock Regulations 1921 shall extend and apply accordingly Provided that in construing the said Article 4 for the purposes of this section the Minister of Transport shall be substituted for the Minister of Health.

Power to re-borrow.

173.—(1) The Corporation shall have power—

(*a*) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended forthwith to be repaid; or

(*b*) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(*a*) by instalments or annual payments; or

(*b*) by means of a sinking fund; or

(*c*) out of moneys derived from the sale of land; or

(*d*) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) The following enactments are hereby repealed :— A.D. 1926.

Section 70 (Power to re-borrow) of the Bristol Corporation Act 1918; and

So much of section 70 (Incorporation of certain sections of Acts of 1897 1901 and 1918) of the Bristol Corporation Act 1920 and of section 13 (Incorporation of certain sections of Acts of 1897 1901 and 1918) of the Bristol Corporation Act 1922 as applies section 70 of the said Act of 1918 to the purposes of the said Acts of 1920 and 1922.

As to section 234 of the Public Health Act 1875.

174. In calculating under subsection (2) of section 234 of the Public Health Act 1875 the amount which the Corporation may borrow the amount of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Corporation under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the total debt of the Corporation under those Acts.

Power to use one form of mortgage for all purposes.

175.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Ninth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

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(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon such sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed Every such register shall be open to public inspection during office hours at the said office without fee or reward and the treasurer or other person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the said Ninth Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the treasurer who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and

descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the treasurer wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

(12) Sections 236 to 238 of the Public Health Act 1875 shall not apply to any mortgages granted by the Corporation after the passing of this Act.

Receipt in case of persons not sui juris.

176. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Return to Minister of Health with respect to repayment of debt.

177.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the town clerk or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

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(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The foregoing provisions of this section shall be substituted for any provisions of the local Acts or Orders now in force in the city requiring an annual return to be made to the Minister with regard to the repayment of debt.

Evidence of transfer or transmission of securities.

178. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the treasurer of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Subscriptions to local government

179. The Corporation may pay out of the borough fund as expenses incurred by them under the Municipal Corporations Act 1882 reasonable subscriptions whether

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associations and other expenses.

annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings.

Appointed auditors.

180.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors appointed under the Municipal Corporations Acts Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as "the appointed auditor."

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 (Borough auditors) of the Municipal Corporations Act 1882 shall not apply within the city.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein instead of the borough auditors and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

(5) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or

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expedient with respect to the accounts and any matter arising thereout or in connection therewith.

Period for repayment of loans under Municipal Corporations Act 1882.

181. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

Fund for insurance against certain accidents.

182.—(1) The Corporation may establish in accordance with the provisions of this section a fund (in this section called "the general insurance fund") with a view to providing a sum of money which shall be available for the purpose of meeting any claims made against the Corporation in respect of any death or personal injury or accident or any damage to property or any loss or injury arising from any such cause where such death personal injury damage loss or injury is caused or contributed to directly or indirectly by any vehicle appliance or other property of the Corporation.

(2) The Corporation may pay into the general insurance fund in each or any year such sums (not exceeding in any one year ten thousand pounds) as they may deem necessary or expedient from time to time.

(3) Nothing in this section shall affect the power of the Corporation to insure against liability in respect of any such claim as aforesaid in any public insurance office in England or partly in such public insurance office and partly in the general insurance fund.

(4) The Corporation shall provide the payments from time to time to the general insurance fund from the respective revenues funds or rates out of which any vehicle appliance or property being of such a nature as to be likely to give rise to such a claim as aforesaid is provided and shall apportion such payments among such revenues funds and rates in such proportions as they shall from time to time determine.

(5) Except so far as the general insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet the liabilities in

respect of any such claim as aforesaid all moneys for the time being standing to the credit of the general insurance fund shall be invested and the interest and annual proceeds arising therefrom shall also be invested and accumulated Provided that if it appears to the Corporation at any time that the general insurance fund amounts to a sum in excess of what is reasonably necessary to cover the risks insured in the said fund the Corporation may during such period or periods as they think fit carry the interest and annual proceeds as aforesaid to the credit of such of the revenues funds or rates out of which payments to the general insurance fund are provided and in such proportions as they shall from time to time determine.

(6) The amount of the general insurance fund shall not at any time exceed one hundred thousand pounds but the Corporation may resort to the said fund notwithstanding that the same may not at the time have reached or may have been reduced below the said maximum amount and if the said fund be at any time reduced it may thereafter be again restored to such maximum amount and so on as often as the reduction happens.

(7) If at any time the general insurance fund is insufficient to meet any such claim as aforesaid the Corporation may with the sanction of the Minister of Health and on such security as the Minister may prescribe borrow at interest under and subject to the provisions of this Act such sums of money as will be necessary to make up the deficiency.

Increase of annual expenditure under Clifton and Durdham Downs (Bristol) Act 1861

183. Notwithstanding anything contained in the Clifton and Durdham Downs (Bristol) Act 1861 as amended by section 67 (Increasing amount authorised to be expended under Clifton and Durdham Downs (Bristol) Act 1861) of the Bristol Corporation Act 1904 the Corporation may expend in any one year in carrying that Act into execution any sum or sums not exceeding in the whole one thousand pounds and the provisions of the first mentioned Act with respect to the raising and expenditure of the sum thereby authorised to be raised and expended in any one year shall extend and apply to the raising and expenditure for the purposes of that Act of any sum under the powers of this Act.

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Part XVII.

Miscellaneous.

For protection of Great Western Railway Company.

184. For the protection of the Great Western Railway Company (in this section called "the company") the following provisions shall unless otherwise agreed in writing between the Corporation and the company apply and have effect (that is to say):—

(1) (*a*) In constructing Work No. 1 by this Act authorised the Corporation shall provide a suitable tidal flap valve at the termination of the said work and shall at all times properly cleanse and maintain the same;

(*b*) Nothing in this Act shall authorise the Corporation to remove the existing tidal flap valve situate in the Mere Bank Rhine on the south-eastern side of the company's railway:

(2) The Corporation shall not object to the construction by the company at any time after the completion of the said Work No. 1 of a culvert in extension of that work under their railway in a south-easterly direction for such distance as the Mere Bank Rhine is situate upon the property of the company:

(3) Notwithstanding anything contained in this Act or shewn upon the deposited plans and sections the Corporation shall not (except with the previous consent of the company under their common seal) purchase or acquire any lands or property belonging to or used by the company which the Corporation are by this Act authorised to enter upon take or use for the purposes of this Act but the Corporation may purchase and take and the company shall sell and grant an easement or right in perpetuity of using such of the lands of the company as may be necessary for the construction of the works numbered 7 and 8 by this Act authorised and any electric lines placed or laid under the provisions of the section of this Act of which the marginal note is "Power to lay electric lines in or on certain

works" (which works and electric lines together with any works whether permanent or temporary which may be necessary for or incident to the construction thereof are in this section referred to as "the said works") subject to and in accordance with the provisions of this section:

(4) The Corporation shall pay to the company for the easement or right which they may acquire under the provisions of this section such consideration as may be agreed upon or as may be fixed in the event of difference by arbitration in the manner provided by the Lands Clauses Acts with respect to the settlement of disputed compensation:

(5) Work No. 7 shall be constructed by the Corporation as a concrete culvert five feet in depth by three feet in width surrounded with concrete and so that no part of such work shall be at a depth of less than four feet below the existing level of the upper surface of the rails at the point of crossing The Corporation shall carry Work No. 8 over the railway of the company by means of a wrought iron or steel girder structure of a width not exceeding twenty-five feet with wrought iron or steel flooring and covered sides supported by three wrought iron or steel piers founded on brickwork or concrete in such positions as shall be reasonably approved by the engineer of the company (in this section referred to as "the engineer") and such structure shall be constructed and for ever maintained by the Corporation with a clear headway throughout each span of not less than fifteen feet above the existing level of the upper surface of the rails. upon the railway of the company at the point of crossing and with such constructional depth as the company may reasonably approve:

(6) The Corporation shall construct the said works in accordance with the provisions of this section and according to such plans sections drawings and specifications (including particulars as to the quality and strength of materials) as shall be previously submitted to and reasonably

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approved in writing by the engineer or in case of difference between him and the Corporation determined by an arbitrator to be appointed as hereinafter provided and the Corporation shall not commence the construction of the said works or enter upon or interfere with any lands works or property belonging to or used by the company until such plans sections drawings and specifications have been so submitted and approved or determined Provided that if within twenty-eight days of the receipt of such plans sections drawings and specifications the engineer has not signified his disapproval he shall be deemed to have approved thereof :

(7) The said works shall be executed by and in all things at the expense of the Corporation according to the plans sections drawings and specifications approved or determined as aforesaid and under the superintendence and to the reasonable satisfaction of the engineer and in such manner and at such times as he may require Provided always that if at any time within fourteen days after the said plans sections drawings and specifications have been approved or determined as aforesaid the company so elect and of such election give notice in writing to the Corporation the company may themselves carry out such intended works (other than such electric lines as are referred to in subsection (3) of this section) in accordance with the said plans drawings and specifications and the Corporation shall repay to them on demand the reasonable expense thereof :

Provided also that in the event referred to in the preceding proviso the Company shall commence the works as soon as they may be reasonably required by the Corporation so to do :

(8) The said works (whether constructed by the Corporation or by the company) shall after commencement thereof be proceeded with with all reasonable despatch :

(9) The Corporation shall to the reasonable satisfaction of the engineer make all necessary

provision for the drainage of the said works and of the property of the company where it is interfered with by the same and the Corporation shall not except with the consent of the company connect any drain or work for carrying away surface water with any stream watercourse drain or channel on the company's property or drain any surface water thereinto :

(10) The Corporation shall construct and maintain the said works so far as the same pass under over or adjoin or affect the railway lands property or works of the company in good order and condition and to the reasonable satisfaction of the engineer and so as not to injure the stability of and so as to leave undisturbed at all times the lines of railway and other works connected therewith of the company and so as in no way to obstruct impede endanger or interfere with the free uninterrupted and safe user of the said railway of the company or with the traffic thereon and if any such obstruction impediment damage or interference shall be caused or take place the Corporation shall pay full compensation to the company in respect thereof Provided that if the company so elect and of such election give notice in writing to the Corporation they may themselves maintain the said works (other than any such electric lines as are referred to in subsection (3) of this section) at the expense of the Corporation :

(11) The Corporation shall bear and on demand pay to the company the reasonable expenses (including compensation payable to any workmen or their legal representatives or dependants who may be injured or killed whilst employed by the company in or about such works) of the employment by the company during the construction and subsequent maintenance of the said works of a reasonably sufficient number of inspectors watchmen and signalmen to be appointed by the company for watching their railways and works and the conduct of the

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traffic thereon with reference to and during the execution of the said works for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of the Corporation or of their contractors with reference thereto or otherwise:

(12) If by reason of the construction of the said works it shall become necessary to add to alter or remove any signal cabin signal posts signals telegraph and telephone posts and wires or other works on or connected with the railways of the company or substitute other works therefor the company shall carry out such additions alterations removal or substitution and the reasonable expense thereof shall be repaid to them by the Corporation:

(13) If and whenever the Corporation fail to comply with their obligations under subsection (10) of this section the company may make and do in and upon as well the lands of the Corporation as their own lands all such works and things as may be reasonably requisite to make good such failure and the expense reasonably incurred by them in so doing shall be repaid to them by the Corporation The engineer and those authorised by him shall at all times have free access to the said works and every facility shall be afforded to him or them for inspection thereof:

(14) Before commencing the construction of any works which may affect the stability of the said railway of the company the Corporation shall if required by the company so temporarily support strengthen shore up or underpin the railway and embankments thereof and execute such other protective works as the engineer shall deem necessary for ensuring the safety of the railway and for enabling as far as possible the trains of the company to pass over the same without the necessity of slackening speed and such protective works when commenced shall be proceeded with and completed with

all reasonable despatch Provided always that if the company so elect they may themselves construct such protective works and the Corporation shall repay to them the reasonable expense thereof:

(15) If by reason of the execution of the said works or any failure thereof the said railway or other property of the company shall be injured or damaged such injury or damage shall be forthwith made good by the Corporation at their own expense and in the event of their failing so to do the company may make good the same and recover the reasonable costs thereof from the Corporation (including compensation payable to any workmen or their legal representatives or dependants who may be injured or killed whilst employed by the company in and about such works):

(16) If at any time hereafter the company shall require to lift widen lengthen strengthen reconstruct alter or repair their railway or works connected therewith at the point where any of the said works pass thereover or thereunder they shall be at liberty to do so and the Corporation shall free of cost afford all reasonable and proper facilities for any such purposes and any additional expense which the company may reasonably incur in lifting widening lengthening strengthening reconstructing altering repairing or maintaining their railway or works due to the existence of the said works shall be paid on demand by the Corporation:

(17) Notwithstanding anything in this Act contained the Corporation shall be responsible for and make good to the company all costs losses damages and expenses (including compensation payable to any workmen or their legal representatives or dependants) which may be occasioned to the company or to any of their works lands or property or to any person using or occupying the same whether as tenant or otherwise or to the traffic on the said railway or otherwise by reason of the construction maintenance or failure of the said works or of any act

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or omission of the Corporation or of any of the persons in their employ or of their contractors or otherwise and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such construction maintenance or failure and of any such act or omission.

(18) (*a*) If in the course of constructing any works upon lands in the urban district of Portishead now owned by the Corporation or to be acquired by them under the powers of this Act the Corporation shall encounter or interfere with any spring or intercept any underground stream of water they shall use such means as may be reasonably practicable for preserving such spring and for continuing the flow of water from such spring or stream in the channel or direction in which the same flowed before such interference or interception so as (so far as practicable) not to diminish the supply of water to the well of the company situate at their flour mills at Portishead;

(*b*) If during the construction or at any time within twelve months after the completion of any such works of the Corporation as aforesaid any diminution in such supply shall occur and the company shall prove that such diminution was caused by the execution of the said works the Corporation shall at their option either make good to the company such diminution or repay to the company any expenses which the company may reasonably incur in making good such diminution;

(*c*) The company shall be entitled for the purposes of this subsection to enter upon and inspect any such works of the Corporation as aforesaid at any time during the construction thereof on giving to the Corporation reasonable notice in writing of their intention so to do but the Corporation shall not be under any responsibility or incur any liability in respect of any accident or injury to any officer or servant of the company while making any such entry or engaged in any such inspection:

(19) The Corporation shall not without the previous consent of the company exercise the powers conferred on them by the section of this Act of which the marginal note is "Electric lines between generating station and electricity limits" in respect of any street or road (not being a public highway) which is the property of the company but such consent shall not be unreasonably withheld:

(20) Nothing in this section contained shall prejudice alter or affect the rights of the company or the Corporation under any agreement between them relating to the mains pipes or other works of the Corporation and where the provisions of such agreement are inconsistent with the provisions of this section the provisions of the said agreement shall apply:

(21) If any dispute (other than under subsection (4) hereof) shall arise between the company and the Corporation respecting the matters and provisions aforesaid or any of them such dispute shall be determined unless otherwise agreed by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and save as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

As to Peloquin's Charity.

185. For the purposes of the charity known as "Peloquin's Charity" established by the will dated the twenty-seventh day of April one thousand seven hundred and sixty-eight of Mary Ann Peloquin and of the Act 21 and 22 Vict. cap. 30 confirming a scheme of the Charity Commissioners amending the said will the expression "the city of Bristol" where used in the said will and in paragraph 4 of the schedule to the said Act shall mean the city as constituted for the time being notwithstanding the special trusts contained in the said will and Act which trusts so far as they prescribe the numbers of recipients of benefits under the said charity and the areas from which they should be drawn are hereby repealed.

Except as herein provided the said charity (except as to so much of the net yearly income as is in any year

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from time to time not required within the year for application under the trusts of the said will) shall be administered in pursuance of the existing trusts or of such other trusts as may from time to time be established by a scheme or schemes of the Charity Commissioners.

Delegation of certain powers to committees.

186. The powers and duties conferred and imposed upon the Corporation by Part III. (Electricity) Part VII. (Streets buildings and drains) Part VIII. (Sanitary) Part IX. (Human food) Part X. (Slaughter-houses) Part XI. (Infectious disease) Part XII. (Street trading) and Part XIII. (Hackney carriages and police) of this Act shall be deemed to be purposes which may (if the Corporation think fit) be regulated and managed by means of committees appointed by the Corporation in pursuance of section 200 of the Public Health Act 1875.

Recovery of penalties &c.

187. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Application of Arbitration Act 1889.

188. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be subject to the provisions of the Arbitration Act 1889.

Inquiries by Minister of Health.

189.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Minister of Health shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Minister under the Public Health Act 1875.

(2) The Corporation shall pay to the Minister of Health any expenses incurred by that Minister in relation to any inquiries referred to in this section including

the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Minister not exceeding five guineas a day for the services of such inspector.

Power to enter premises.

190. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part III. (Electricity) Part VII. (Streets buildings and drains) Part VIII. (Sanitary) Part IX. (Human food) Part X. (Slaughter-houses) and Part XI. (Infectious disease) of this Act as if those purposes had been mentioned in the said section 102.

Penalty on occupier refusing execution of Act.

191. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part VII. (Streets buildings and drains) or Part VIII. (Sanitary) of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such work.

In executing works for owner Corporation liable for negligence only.

192. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the city execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses

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for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

As to breach of conditions of consent of Corporation.

193. Where under this Act or under any general or local Act for the time being in force in the city the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Consent of Corporation to be in writing.

194. All consents given by the Corporation under the provisions of this Act or of any local Act Provisional Order byelaw or regulation for the time being in force within the city shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Evidence of appointments authority &c.

195. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act for the time being in force in the city it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the lord mayor or of the town clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Damages and charges

196. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in

addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled or determined by a court of summary jurisdiction before whom any offender is convicted.

to be settled by justices.

197. Where under the provisions of this Act or any local Act in force in the city the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall save as in this Act expressly provided be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in case of joint owners.

198. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

199. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the city.

Informations by whom to be laid.

200. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Saving for indictments &c.

201. Where the payment of more than one sum by any person is due under this Act any summons or

Summons or warrant may

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warrant issued for the purposes of this Act in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

contain several sums.

As to appeal.

202. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Part VII. (Streets buildings and drains) Part VIII. (Sanitary) Part XI. (Infectious disease) or Part XIII. (Hackney carriages and police) of this Act or by any conviction or order made by a court of summary jurisdiction or a petty sessional court under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction or a petty sessional court the Corporation may in like manner appeal.

Application of section 265 of Public Health Act 1875.

203. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

Judges not disqualified.

204. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Compensation how to be determined.

205. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Powers of Act cumulative.

206. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee (as the case may be) may exercise such other powers and be entitled to such

other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. A.D. 1926.

Crown rights.

207. Except as hereinafter expressly provided nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Crown minerals.

208. Notwithstanding the provisions contained in the section of this Act of which the marginal note is "Crown rights" or in any public statute His Majesty and His lessees for their respective interests may work any minerals belonging to His Majesty in right of His Crown under or adjacent to lands and works of the Corporation authorised to be taken or constructed by this Act but in the event of any such right being at any time intended to be exercised sections 77 to 85 (both inclusive) of the Railways Clauses Consolidation Act 1845 as amended by the Mines (Working Facilities and Support) Act 1923 and the First Second and Third Schedules to such last mentioned Act shall apply as if the same were in relation to such minerals incorporated in this Act and as if the Corporation were a railway company and the said lands and works were the railway and works of such railway company and as if the Commissioners of Crown Lands were the mine owners or royalty owners as the case may be and so that any compensation payable by the Corporation to or for the benefit of His Majesty as the mine owner or royalty owner or payable to the Corporation by His Majesty as such owner shall be payable to or by the Commissioners of Crown Lands as the case may be.

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Costs of Act.

209. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and the borough rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

Site for Generating Station.

Lands in the parish and urban district of Portishead in the county of Somerset bounded on the north and north-east by Pier Road on the north-west by Leigh View Road on the south-west in part by South Road and in part by the northern side of the footpath leading therefrom to Burlington Road and on the south-east by the western side of Burlington Road and of the footpath leading from Burlington Road to Pier Road.

THE SECOND SCHEDULE.

Streets not repairable by the local authority railways and tramways which may be broken up for purposes of the Electricity Undertaking.

In the city—

Streets :—

Road between Avonmouth Road and Tea Farm Avonmouth Avon View Shirehampton The Alley Whiteway Road St. George Ashgrove Road Ashley Down lane between Arley Terrace and Chester Street St. George lane between Altringham Road and Congleton Road Albert Place Westbury-on-Trym Alexandra Road Southmead Allens Court Hotwell Road lane rear of Alma Road Clifton Antrim Road Westbury-on-Trym lane rear of Ash Road Horfield lanes (three) leading from Ashgrove Avenue Ashgrove Road Horfield lane off Queen's Road at rear of Ashley Down Road Avon Square Hotwells lane between Ashley Court Road and Somerville Road lanes rear of Ashley Down Road Alfred Cottages St. Paul's Air Balloon Court Wilder Street St. Paul's All Saints' Court Corn Street Avon Square Anvil Street St. Philip's Albert Square St. Philip's Alma Cottages Union Road Albion Place Redcross Lane St. Jude's

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Albion Court St. James' Parade Albany Place Montpelier Ayre's Buildings Commercial Road Redcliff Adelaide Place Chatterton Square Redcliff road from Ashley Down Road to Fry's Athletic Ground.

Back Lane Stoke Lane Westbury-on-Trym Ballast Lane Avonmouth Bains Cottages Whiteway Road St. George alley between Beech Hill and Ham Lane Stapleton Brinkworthy Road Stapleton Beechgrove Road Fishponds lane between Bowden Road and Altringham Road St. George Butler's Road St. George Beaufort Road Fishponds lane between Balmoral Road and Wolferton Road St. Andrew's Barracks Road Horfield Bayswater Road Horfield road and footpath from Bayswater Avenue to Redland Green lane rear of Bayswater Avenue Redland lane between Bayswater road and Highbury Road lane rear of Beaconsfield Road Redland Bear Court Hotwell Road Bear Yard Hotwell Road Beauchamp Road Horfield lane rear of Beauchamp Road Beaufort Road Horfield Beloe Road Horfield lane rear of Upper Belgrave Road lane Upper Belgrave Road between Roxburgh and Tellisford House Bellevue Cottages Clifton Wood lane rear of Berkeley Road Westbury Park Berry Lane Horfield Beverley Road Horfield lanes rear of Bishop Road Boston Road Horfield lane between Boston Road and Toronto Road lane between Boston Road and Doone Road Horfield Brecon Road Westbury-on-Trym lane rear of Brecon Road Westbury-on-Trym Branksome Road Redland lane rear of Bromley Road Horfield lane rear of Brookfield Road St. Andrew's two lanes rear of Brunswick Place Hotwells Buckingham Place Clifton Buttercombe Place Paul Street Baker's Court Temple Bull Court Ellbroad Street St. Philip's Broad's Court Rosemary Street Blenheim Square Marlborough Hill Byron Place Brandon Hill Barrow Court Wade Street St. Jude's Ballams Court Great George Street St. Jude's Broad's Court Great Ann Street St. Jude's Baker's Court Great Ann Street St. Jude's Bedford Place Zion Road Easton Barnett Court Lawrence Hill Butter Alley Old Bread Street St. Philip's Bethel Place Union Road St. Philip's Boulter's Court Union Road St. Philip's Burgess Court Kingsland Road St. Philip's Barcroft Place Old Market Street St. Philip's Britannia Place Jacob Street St. Philip's Barton Place Barton Street St. James Butler Road Bedminster Brendon Road Bedminster Bayham Road Knowle Birchwood Road St. Anne's Barnard Place Bedminster Bethel Place Redcliff Berkeley Square North Street Bedminster.

Church Road Stoke Bishop Church Avenue Stoke Bishop road running from cemetery to Canford Lane opposite Coombe House Westbury-on-Trym road running from Canford Farm to cemetery footpath from Court Farm to Canford Westbury-on-Trym footpath from Court Farm to Henbury Hill Westbury-on-Trym footpath running from Canford Lane to Henbury via Golf Links footpath running from Cherry Orchard to Coombe Hill Westbury-on-Trym road running from Canford Lane to Henbury Hill Westbury-on-Trym Catherine Street Avonmouth footpath running from Coombe Lane to Mill Pill Stoke Bishop road running from Cross Elms Lane to Coombe Dingle Road Stoke Bishop Clay Hill St. George The Chase Fishponds Cherry Tree Road Fishponds Clare Road Fishponds Cat Gut Alley St. George roads around Cossham Hospital St George Cottrell Road Fishponds Cowlyn Road Eastville Church Lane Whitehall two roads running from Clouds Hill Avenue to Plummer's Hill lane running from Chester Street to Bowden Road Fishponds Cairns Road Redland Chapel Lane Fishponds Cousins Barton St. George Cote Road Westbury-on-Trym Cairns Road Westbury Park lane rear of Cairns Road Caine Road Horfield Caledonia Mews Victoria Street Clifton lane rear of Cambridge Road Horfield Camden Terrace Hotwells Canowie Road Redland two lanes off Canynge Road Clifton lane off Canynge Square Clifton Cardigan Road Westbury-on-Trym lane from Cardigan Road to Dublin Crescent Westbury-on-Trym Carmarthen Road Westbury-on-Trym lane rear of Carmarthen Road lane between Carnarvon Road and Northumberland Road Redland Carter's Buildings 2 Portland Street Clifton lane rear of Caroline place Hotwells Charles Cottages Charles Place Hotwells lane rear of Cheltenham Road lane rear of Chesterfield Road lanes rear of Church Road Horfield Churchways Avenue Horfield Clare Avenue Bishopston Clevedon Road Bishopston lane between Clifton Court and Clifton Church lane rear of Clifton Park Clifton lane rear of Clifton Vale Clifton Clifton Wood Terrace Clifton lanes rear of Cold Harbour Road lane off College Road Westbury-on-Trym lane between Court Road and Highbury Road Horfield Court No. 224 to 226 Hotwell Road Court No. 206 Hotwell Road Court No. 252 Hotwell Road lane rear of Cornwall Road Bishopston lanes rear of Codrington Road lane rear of Cranbrook Road Redland Upper Cranbrook Road Redland Crofton Avenue Horfield Cumberland Yard Hotwell Road Cumberland Cottages Hotwell Road Charley Place St. George's Road Hotwells

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Crabswell Court Frogmore Street St. Augustine's Clarence Court St. Michael's Hill Clarence Row St. Michael's Hill Carpenter's Court Haberfield Street St. Jude's Colston Place Milk Street St. Paul's Colston Arms Court St. James' Court Black Friars St. James' Cottage Place Maudlin Street St. James Cottage Place Montague Hill St. James' Cheapside St. James' Crocker's Court Lamb Street St. Jude's Clark's Court West Street St. Philip's Cole's Buildings Birkin Street St. Philip's Clarke's Buildings Union Road St. Philip's Cottage Place Union Road St. Philip's Cook's Gardens Day's Road Barton Hill Coronation Place Queen Charlotte Street Cumberland Buildings Day's Road Barton Hill Clift Place Guinea Street Redcliff College Place St. Augustine's Crowndale Road Knowle Chatterton Place Redcliff Clarence Place Bedminster Chapel Barton West Street Bedminster Calcott Road Knowle.

Devon Road Fishponds Dundridge Farm Lane St. George Downs Road Westbury-on-Trym Dingle Road Coombe Dingle footpath from Durdham Down to Downs Road Westbury-on-Trym Darnley Avenue Horfield Delvin Road Southmead Devonshire Lane Redland lanes rear of Downend Road Horfield Dorset Villas Eastfield Terrace Westbury-on-Trym lane between Doone Road and Ramsey Road Horfield lane between Douglas Road and Ramsey Road Horfield lane rear of Dowry Place Hotwells Downend Road Horfield five lanes leading from Downs Park East lane between Downs Park East and Downs Park West Draycott Road Ashley Down The Drive Henleaze Westbury-on-Trym lane between Dublin Crescent and Brecon Road Henleaze Westbury-on-Trym lanes rear of Dublin Crescent Dundonald Road Redland lane between Durdham Park and Iddesleigh Road Dark Entry Brick Street St. Jude's Deal Yard Passage Street St. Philip's Durnford Street Bedminster Duckmoor Road Bedminster Davis's Buildings West Street Bedminster.

Elton Road St. George Eastfield Westbury-on-Trym Eastfield Terrace Westbury-on-Trym lanes rear of Eastfield Road Westbury-on-Trym lane rear of Dorrington Villas Westbury-on-Trym lanes rear of Egerton Road Bishopston Evelyn Road Southmead Eugene Gardens Marlborough Street Earlsmead Terrace Pennywell Road East Buildings Sussex Street St. Philip's.

Footpath from Fishponds Cottages to Canford Westbury-on-Trym roads from Filwood Road to Forest Road Fishponds Featherstone Road Fishponds lane rear

of Falmouth Road Bishopston Fenton Road Bishopston two roads from Filton Avenue Horfield to Rugby Memorial Ground Filton Avenue lane rear of Filton Road Horfield lane from Caine Road to Toronto Road lane from Montreal Avenue to Toronto Road Fishponds Cottages Westbury-on-Trym Florence Lane Westbury Park Francis Road Southmead Funchal Villas Clifton Fear's Cottages Frogmore Street St. Augustine's Frome Court Frome Street St. Paul's Frome Place Wade Street St. Jude's Flook's Court Lawford Street St. Jude's Fear's Buildings Waterloo Road St. Philip's Farmer's Court Jacob Street St. Philip's Francis Place Barton Street St. James' Fox and Crane Court St. James' First Avenue St. Anne's Park.

Grove View Stapleton Gorse Hill Fishponds Greenway Fishponds Glenburn Road (off Charlton Road) St. George Geneva Road Whitehall Green Lane Avonmouth Gibraltar Rocks Clifton Wood Gloucester Street Clifton eleven lanes at rear of Gloucester Road Horfield Grosvenor Place Gordon Road Clifton Gideon Passage St. Paul's Gloucester Place St. Michael's Hill Gabriel's Place Broadweir Gloucester Place St. Paul's George's Court Little George Street Green's Buildings West Street Bedminster.

Holly Lodge Road St. George Hillfield Avenue St. George Holly Grove St. George Henshaw Road St. George Heathcote Road Fishponds Hardey's Lane St. George lane from Howcroft Lane to Parry's Lane Stoke Bishop Hollybush Lane Stoke Bishop footpath Hollybush Lane to Schools Stoke Bishop footpath Henbury Allotments to Cherry Orchard footpath Hung Road to Lamplighters Shirehampton Hudd's Barton St. George Haggett's Cottages Clifton Wood Halberton Terrace Clifton Halsbury Road Redland lane at rear of Halsbury Road Redland Harcourt Road Redland lanes at rear of Harcourt Road Redland Harcourt Hill Redland lane at rear of Harcourt Hill Redland lane at rear of Harley Place Clifton Henleaze Park Drive Westbury-on-Trym two roads Henleaze Park Estate lane at rear of Henleaze Road Westbury-on-Trym road off Henbury Road Westbury-on-Trym Henley Grove Henleaze Westbury-on-Trym Highbury Road Horfield Highland Vale Mornington Road Clifton Highland Place Worrall Road Clifton Hill View Clifton Holmwood Road Westbury-on-Trym lane rear of Holmes Grove Henleaze Westbury-on-Trym Holmes Grove Road Westbury-on-Trym lane rear of Holmes Grove Road Westbury-on-Trym Hope Square Granby

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Hill lane between Hope Square and Granby Hill lane rear of Hotwell Road path between Hotwell Road and Dowry Schools Merchants' Dock Road lane rear of Howard Road Westbury Park Hurlingham Road St. Andrew's lanes rear of Hurlingham Road St. Andrew's Harris's Yard Temple Back Holmes' Court Castle Street Hartland Court Castle Green Hampton Court Cross Street Hillgrove Place Stokes Croft Headington Court Little Ann Street Harris's Court Sussex Street Hillgrove Place Jamaica Street Havington Court Kingsland Road Harrow Road Brislington Hillsbridge Court Clarence Road Bedminster Harford Square Harford Street Cathay Harford Terrace Harford Street Cathay Harding's Barton St. George Holmesgrove Henleaze Westbury-on-Trym.

Ivy Lane The Causeway Fishponds Island Court Penn Street St. Paul's Irving Terrace Newtown St. Philip's.

Lane from Johnstone Road to Westminster Road St. George Jockeys Lane St. George James' Place Frogmore Street St. Augustine's Jones Court Frogmore Street John Place Zion Road St. Philip's Jamaica Terrace Jamaica Street Jubilee Road Knowle James Place Clifton.

Kingsmead Road Two Mile Hill Kitchener Terrace Fishponds Kimberley Road Fishponds Kingsweston Road to St. Andrew's Road Avonmouth lane at rear of Kennington Avenue Bishopston path between Kellaway Avenue and Wellington Hill Horfield path between Kellaway Avenue and Park Grove Westbury Park path between Kellaway Avenue and Bishop Road Horfield Knight's Cottages Anchor Road St. Augustine's Kent's Buildings Frogmore Street St. Augustine's Kingston Buildings Portland Street King William Court Old Bread Street St. Philip's Knight Court Old Bread Street St. Philip's Kingsland Cottages Kingsland Road St. Philip's Kensal Avenue Kensal Road Bedminster footpath between Kingsweston Road and Catherine Farm Avonmouth.

Lane between Lodge Road and Soundwell Road lane between Lewington Road and Thicket Road Fishponds Lamb Hill St. George Luckley's Barton Air Balloon Hill footpath Lamplighters to West Town Avonmouth Lonsdale Road Fishponds footpath between Lawrence Weston Road and Packgate Farm Laundry Road Southmead lane at rear of Laxey Road Horfield Lawrence Grove Henleaze Westbury-on-Trym Longmead Avenue Horfield lanes at rear of Longmead Avenue Horfield path between Longmead Avenue and Kellaway Avenue Horfield path between Longmead Avenue and Clevedon

Road Horfield lane at rear of Luccombe Hill Redland lane rear of Logan Road Bishopston Lambert's Court Leopard Lane St. Augustine's Lewis' Buildings Temple Lloyd's Court Castle Street Lower Terrace Castle Green Lawrence Place Bishop Street St. Paul's Limekiln Court Bragg's Lane St. Jude's Lewis Buildings Old Bread Street St. Philip's Lyne's Court Jacob Street St. Philip's Lydstep Terrace Bedminster.

Milsom's Barton Bell Hill Road St. George Milsom Alley Whitefield Road St. George Maggs Lane St. George Mayfield Park North Fishponds Mayfield Park South Fishponds Mayfield Park West Fishponds Mayfield Avenue Fishponds Mariner's Path Stoke Bishop road from Moorhouse Lane to Smoke Road Shirehampton lane at rear of Manilla Road Clifton Manor Road Southmead lane rear of Southmead Road lane at rear of Maple Road Horfield lanes at rear of Maurice Road St. Andrew's Park Manx Road Horfield lane at rear of Maple Road Horfield Memorial Road Fosseway road at rear of Merchant's Road Hotwells Meridian Vale Clifton lane at rear of Meridian Vale Clifton Merton Road Horfield Milton Road Horfield Monk Road Horfield lane at rear of Monk Road Horfield Montreal Avenue Horfield Moore's Cottages Charles Place Hotwells Morgan's Court Hotwells court leading from Mornington Road Clifton path between Mina Road and Station Road St. Wurbergh's Maddock's Court Frogmore Street St. Augustine's Mark's Court Lower Castle Street Merchant's Court Quakers Friars Mill's Place Milk Street May's Court Great George Street Manning Court Great Ann Street Malvern Road Brislington Mardon Road St. Anne's Merrick's Buildings Redcliff Hill Manley's Place Stillhouse Lane Bedminster.

Lower Nelson Place The Mall lane between Nevil Road and Mervyn Road Bishopston two lanes at the rear of Nevil Road Bishopston Norman Court Hotwell Road Norman Terrace Hotwell Road lane at rear of North View Westbury Park lanes North View Westbury Park Nelson Place Redcliff Newfoundland Place Redcliff Newfoundland Place Milk Street Norfolk Buildings Zion Road Norfolk Place Zion Road Newbury Court Clarence Road Nelson Place Old Bread Street St. Philip's Nursery Kingsland Road St. Philip's Newmarket Avenue Broad Street.

Oar Lane Shirehampton road between Oakfield Grove and Arlington Villas Clifton lanes at rear of Osborne Avenue Ashley Down lane at rear of Oldfield Place Clifton

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lane at rear of Oldfield Road Clifton Owen Grove Westbury-on-Trym Old Coach Yard Milk Street Orchard Square Redcliff Hill Osborne Terrace Bartlett's Road Bedminster.

Lane off Pitch Lane Cotham road from Parry's Lane to Hollybush Lane Stoke Bishop Pitch and Pay Lane Stoke Bishop lane between Parry's Lane and Stoke House Road Stoke Bishop footpath from Parry's Lane to Stoke Lane footpath Penpole Common to Penpole Place Shirehampton Prospect Place Fishponds Parkstones Barton St. George Pear Tree Lane St. George Poplar Road Fishponds Poplar Place The Causeway Fishponds Poole Street Avonmouth Pembroke Avenue Shirehampton Portview Road Avonmouth Palmerston Road Westbury Park lane at rear of Palmerston Road Westbury Park Park Grove Henleaze Westbury-on-Trym path from Park Grove to Tennis Courts Westbury-on-Trym Parkstone Road Horfield Pembroke Place Hotwells lanes off Pembroke Road Clifton Pillinger's Place Hotwell Road lane at rear of Pitt Road Horfield part of The Polygon Clifton lane at rear of The Polygon Clifton lane at rear of Portland Place Clifton Providence Place Hotwells Prospect Place Highland Square Prospect Place Horfield lane at rear of Princes Buildings Clifton Princes Place Bishopston Park Square Anchor Road Prospect Row Vine Row St. Michael's Painter's Cottages St. Michael's Paul's Place Paul Street Portland Place Kingsdown Princess Amelia Court Pipe Lane Providence Court Marlborough Street Pratten's Court Little Ann Street Puddy's Buildings Pennywell Road Pinnell Court St. Jude's Providence Place Lawrence Hill Providence Place Old Bread Street Pearce's Place Freestone Road Pentagon Court Kingsland Road Portland Cottages Wilder Street Pallins Place St. Jude's Prewett Place Prewett Street Cathay Paradise Cottages Clarence Road Bedminster.

Quarry Lane Whiteway Road St. George Queen's Road St. George Quabb Farm Road Horfield Queen's Road Horfield lane rear of Gordon Road Clifton Queen's Road Knowle.

Rotherham Bottom St. George Raglan Lane St. George footpath from Iron Bridge to Rushpool Shirehampton Ridgeway Road Fishponds lane rear of Ridgeway Road Fishponds lane rear of Radnor Road Henleaze Radnor Road Horfield lane at rear of Ralph Road Ashley Down Ramsey Road Horfield lane rear of Randall Road Clifton Rectory Field Road Church Road Horfields Redland Court Road Redland lane at rear of Chapel

Green Lane Redland lane off Redland Road Reeces Court Hotwell Road Rock Court Worrall Road Clifton Rosling Road Horfield Royal York Crescent Clifton lane at rear of Rozel Road Horfield lane at rear of Radthorpe Road Horfield Russell Grove Henleaze lane rear of Russell Grove Henleaze Ross Court Frogmore Street Rennison's Place Montpelier Rackhay Queen Charlotte Street Reynard's Place Horsefair Rookery Road Knowle Runswick Road Brislington Redcliff Buildings Bryant Street Redcliff Square Redcliff Hill Rees' Court East Street Bedminster.

Stoke Park Stoke Bishop lane from Stoke Park to Church Avenue Stoke Bishop Station Road Sea Mills footpath between Stoke Bishop and Shirehampton lane rear of Stoke Lane Westbury-on-Trym Southfield Road Westbury-on-Trym footpath Stoke Lane to Redhouse Lane Stoke Bishop footpath from Coombe Dingle to Shirehampton Road footpath from Shirehampton Park to Penpole Road St. Andrew's Road Avonmouth Sir John's Lane Wee Lane Stapleton Summerleaze Fishponds street rear of Stanley Street Fishponds Summerhill Cottages St. George Summerhill Terrace St. George School Lane St. George Snuff Mill Alley Stapleton Sunny Side Stoke Bishop St. Alban's Lane Westbury Park lane at rear of St. Alban's Road Westbury Park lane rear of Orchard Road Ashley Down lane rear of Sommerville Road St. Andrew's Sommerville Road South St. Andrew's St. Bonaventure's Lane Horfield lanes rear of St. Helena Road Westbury Park St. Oswald's Road Redland lane at rear of St. Leonard's Road Horfield Path St. Vincent's Parade Hotwells Saville Place Clifton School Road Ashley Down Road lanes rear of Sefton Park Road Ashley Down Sefton Park Lane Ashley Down lane at rear of Delvin Road Southmead lane at rear of Alexandra Road Southmead lane at rear of Station Road Ashley Hill lane at rear of York Place Clifton road from Sutherland Place to Tennis Courts South Parade Oakfield Road Clifton lane rear of Springfield Avenue Horfield Springfield Grove Westbury Park Seaton's Court Anchor Road St. George's Place St. George's Road St. Michael's Buildings Paul Street Kingsdown Salmon Court Paul Street Kingsdown Strode Place Ellbroad Street Star Passage Castle Street Swan Court Little George Street Shirley Lane Stokes Croft Stokes Croft Place Hepburn Road Seville Court Charles Street St. Andrew's Lane Montpelier Stephen Court Kingsland Road Station Road Montpelier South View Dove Street Kingsdown St. Agnes Avenue Redcatch Lane Knowle Smyth Road Bedminster

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Sylvia Avenue Knowle St. Agnes Avenue Redcatch Lane Knowle lane between Sandholm Road and Bloomfield Road Brislington steps between St. John's Lane and Cotswold Road Bedminster Sturdon Road Bedminster Somerset Buildings Cathay South Place Ship Lane Sargent's Buildings Commercial Road Redcliff Squire's Court Boot Lane Bedminster footpath from Stoke Lane to Canford.

Thingwall Park Fishponds Talgarth Road Ashley Down lane rear of Theresa Avenue Ashley Down Thorndale Mews Alma Road Clifton Tennesse Road Henleaze Toronto Road Horfield Trinity Place Hotwell Road Trym Road Westbury-on-Trym Trinity Court Anchor Road Tower Court Broad Quay Temple Place Victoria Street Tower Terrace Temple The Terrace Castle Green Trenchard Place Trenchard Street Dr. Thomas Lane Tanners Buildings Cheese Lane Tyler's Court Old Market Street Thanet Road Bedminster.

Uplands Road Fishponds Unity Place Durdham Down Upper Terrace Castle Green Unity Place Lawrence Hill Union Buildings Union Road.

Victoria Buildings St. George's Road Victoria Road Shirehampton Vera Road Fishponds Victoria Avenue Ashley Down Road Victoria Place Hotwells Vickery's Buildings Pennywell Road Vyvyan Terrace Lane Clifton.

Willway Alley St. George Willway Road St. George footpath from Westbury Road to Stoke Lane William Street St. George Walliscote Avenue Henleaze Walliscote Road Henleaze lanes rear of Walsingham Road Wanscow Walk Henleaze Westbury-on-Trym Waterford Road Henleaze Westbury-on-Trym Waters Court Hotwell Road court off Waters Lane Westbury-on-Trym Wathen Road St. Andrew's Watkins Yard Westbury-on-Trym Watkins Court S. Green Street Hotwells Walls Court S. Green Street Hotwells lane at rear of Westbury Road lane at rear of Cavendish Road Weston Crescent Horfield Whittaker's Buildings (Upper and Lower) Clifton Wood Willoughby Road Horfield Williamson Road Ashley Down Windsor Terrace Clifton Windsor Terrace Lane Clifton lane at rear of Woodbury Lane Redland Woodside St. Anne's Park Wellington Court Redcross Street Webber's Court Anchor Road Warren Court Frogmore Street Waterloo Court Thomas Street Waterloo Place Rosemary Street Welcombe Court Water Street Windsor Terrace Wilson Street Windsor Place Kingsland Road Wesley Place Horsefair Whippington Court Haymarket.

Yearsley's Buildings Clifton Wood York Villas Clifton lane at rear of York Gardens Clifton.

Lanes rear of Zetland Road Redland.

So much of the following streets as the Great Western Railway Company are liable to repair viz. :—

Ashton Road Newbridge Road (late Wick Lane) Langton Court Road Bartletts Road Parson Street South Liberty Lane Sandy Park Road Lawrence Hill Ducie Road Easton Road Stapleton Road Talbot Road Lockleaze Lane Toronto Road Dr. Day's Bridge Barrow Road Bridge Walk Horfield.

So much of the following streets as the London Midland and Scottish Railway Company are liable to repair viz. :—

Lodge Causeway Filwood Road Ridgeway Road Forest Road Thicket Road Kingsland Road Lawrence Hill Barrow Road Days Road Easton Road.

So much of the following streets as are repairable by the Great Western Railway Company and/or the London Midland and Scottish Railway Company jointly or severally viz. :—

Ashley Hill Redland Grove Redland Road South Road Hampton Park Hampton Road White Ladies Road St. John's Road Hung Road Woodwell Lane road from Smoke Lane to Washingpool Lane Hurlingham Road and Fairlawn Road.

So much of the following streets as are repairable by the Avonmouth Light Railway Company viz. :—

Portview Road Davis Street Avonmouth Road St. Andrew's Road lane between Avonmouth Road and Portview Road.

Railways :—

Level crossings over the Great Western Railway at :—

Wapping Road Gas Works Road Canons' Road Bathurst Parade Gas Ferry Lane Dock Gate Lane Pembroke Place road leading to Stothert and Pitt's Yard Downend Farm near Purdown Downend Road to Sir John's Lane Winterstoke Road Gloucester Road Avonmouth Avon Crescent Road leading from St. Andrew's Road to Royal Edward Dock entrance.

Level crossings over London Midland and Scottish Railway at :—

Thicket Avenue to Lewington Road Clay Bottom Kingswood Junction Avon Street Barton Road Barton Vale Union Road Rose Green Road (near to).

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Level crossings over Great Western Railway and London Midland and Scottish Railway (Joint) at—

Sea Mills Lane West Town Lane Gloucester Road Avonmouth.

Tramways :—

The tramways of the Bristol Tramways and Carriage Company Limited.

In the county of Somerset—

(*a*) In the rural district of Long Ashton—

Parish of Bishopsworth—

Streets :—

Grange Road (from Old Turnpike Road to upper Bishopsworth) Swiss Road (from South Liberty Road to Bristol boundary by Winterstoke Road) lanes from Queen's Road to allotments "The Court" (leading out of Queen's Road a cul-de-sac) Withywood Lane (from Queen's Road to Withywood Farm) lanes leading from the White Gates to Mr. Evans' Farm lane called "The Drum" (by the side of the Bishopsworth Manor House) lane to Healy Farm roads called "Home" to farm (occupier Mr. E. Wyatt) roadway from Common Road to "The Lodge" (in field—private).

(*b*) In the rural district of Keynsham—

Parish of Brislington—

Streets :—

New road leading to Mr. Wilkins' bungalow off Water Lane passage between Grove Park Avenue and Bristol Road (at rear of houses) Talbot Road (part over Great Western Railway) West Town Lane (part under Great Western Railway).

Tramways :—

The Tramways of the Bristol Tramways and Carriage Company Limited.

Parish of Keynsham—

Streets :—

Kelston Road Charlton Park Westbourne Avenue St. Keyna Road Sherwood Road Charlton Park Road Union Road Chandag Road Gaskins Lane Avon Road (from junction with Bitton Road to entrance to Great Western Railway goods yard) Abbey Park The Park The Avenue Priory Road The Nursery Lane (leading off Stidham Lane off Bath Road) lane (off Burnett

Road leading to Limekilns) The Breeches (off Hern Lane off Burnett Road) Durley Park (off Bristol Road) high ground (overlooking Dapp's Hill) Hales Lane road leading to back of Pines (bottom of Dapp's Hill) Station Road (part over Great Western Railway) Pixash Lane (part over Great Western Railway) Lodge Lane (part under Great Western Railway) Broadmead Lane (part under Great Western Railway) road from Charlton Road via Pitsville to Culvers Lane.

Railways :—

Level crossing over Great Western Railway at Station Road.

Parish of Corston—

Streets :—

The Barton (off Corston Lane leading to Hill House).

Parish of Saltford—

Streets :—

Belmont (leading off The Batch near Post Office off Village Street) Norman Park (off Village Street) The Glen (leading off Bath Road below Saltford Station) The Folly (leading off Bath Road below Saltford Station) Golf Club Lane (leading off Burnett Lane off Bath main road) Saltford Street (near Tunnel House) (part over Great Western Railway) Bath Road (part over Great Western Railway) The Shallows (part under Great Western Railway).

Parish of Newton St. Loe—

Streets :—

Lane owned by Earl Temple (between Corston main road and below Corston Village and Bath main road) Stoney Lane (part over Great Western Railway) Weston Road (part over London Midland and Scottish Railway).

Tramways :—

The tramways of the Bath Electric Tramways Limited.

In the county of Gloucester—

(*a*) In the urban district of Kingswood—

Streets :—

Walnut Lane Poplar Terrace The Park Kingswood Brighton Place Victoria Park (portions in Kingswood) footpath South Road to Halls Road road off Britannia Road to Reformatory Lane Woodland Terrace road

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to Webley's Factory Tippett's Road Victoria Road Hanham Alexandria Road Hanham lane from Martin's Road to Pit Road Hanham Worcester Road Dorset Road Kennington Avenue Hampden Street Gladstone Street Wellington Road.

Alleys at the rear of London Street South Road Blackhorse Road Victoria Park Alsop Terrace Kimberley Road parts of Hanham Road Kennington Avenue Seymour Road Derrick Road Laurel Street Bright Street Victoria Road parts of Downend Road Cecil Road Court Road Victoria Road Hanham Alexandria Road Hanham.

Tramways :—

The tramways of the Bristol Tramways and Carriage Company Limited.

(*b*) In the rural district of Warmley—

Parish of Mangotsfield—

Streets :—

Edgeware Road Acacia Road Hill House Road North and South View Ducie Road (bottom portion below Albert Road) Alexandra Road Buckingham Place Red Lion Lane Factory Lane Teewell Avenue Wrenbert Road road behind Picture Theatre (off Pendennis Road) Fern Road Heathcote Road Salisbury Road (part) Hermitage Road Alexandra Gardens Victoria Road (leading from Morley Road towards Staple Hill) Road off Soundwell Road (leading to Page Institute) road from Gloucester Road to Middle Road Hilltop Road road leading from Midland Road to Portland Street on the west side of Derham's Factory Oaklands Parts of the following streets over London Midland and Scottish Railway Teewell Hill Soundwell Road Rodway Hill Mangotsfield Lane Mangotsfield—Shortwood Road.

Tramways :—

The Tramways of the Bristol Tramways and Carriage Company Limited.

(*c*) In the rural district of Chipping Sodbury—

Parish of Winterbourne—

Streets :—

The road to Maule's Nursery from the Filton—Hambrook Road the Begbrook Estate Roads (proposed) the road to Begbrook House the road from

near Lodge to Frenchay Park the road from the junction of Council Roads to Frenchay Park the road running from near Mission Room towards Railway Hambrook Green Lane Winterbourne Trench Lane the road running from School to Winterbourne Lodge the road from school to Winterbourne Park the extension of Victoria Road (to Winterbourne Down from Damson's Bridge) Braemar Avenue and the connecting roads on the Bristol Wagon and Property Company's Estate Filton Winterbourne Road near Elmcroft (part over Great Western Railway) road near Harcombe Farm (part over Great Western Railway) Pye Corner Sturdon (part under Great Western Railway) Dragon Road (part under Great Western Railway) Northwoods Road Hambrook (part under Great Western Railway).

Parish of Filton—

Streets :—

Broncksea Road Charborough Road Northville Road Eden Grove Park Road Northville Road and extension to Filton Station the road to Golf Links via Westwood Farm the road to Stanley Cottages and Brimsoll Conygre Farm Road the lane running from Filton—Patchway Road near "Fairlawn" via Haycroft Fairlawn Avenue Homestead Road Victoria Park (part over Great Western Railway) Gipsey Patch Lane (part under Great Western Railway) Filton Station (part under Great Western Railway) Hambrook to Filton Road (part under Great Western Railway).

Tramways :—

The tramways of the Bristol Tramways and Carriage Company Limited.

Parish of Stoke Gifford—

Streets :—

The road to Walls Court and Stanley Farm Ham Lane the lane to Brickworks the road to Bailey's Farm the Great Western Railway Road to Little Stoke and Station the road from Walls Court via the Hermitage Wood to Dower House the road from Coldharbour Road to Institution the road from Patchway Station to Gospel Hall on the Patchway—Filton Road the road from Stoke Gifford to Filton (part under Great Western Railway).

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(*d*) In the rural district of Thornbury—

Parish of Henbury—

Streets :—

Road running from Grove Road to the District Road near Apple Tree Cottage Coombe Dingle road from a point near Severn House to Hill End Grove Highwood Lane road from Catbrain Lane to its junction with the Charlton Common-Henbury Road road from Hollywood Lane near Hollywood Tower to a point below Holly Hill Wood road from Vimpenny's Common to and including Gipsies Plat road from Gipsies Plat to Ableton Lane road from Berwick Lane to Elmington Manor Farm road from Berwick Lane to Berwick road from Berwick Lane at a point about half-way between Berwick and Elmington Manor Farm Minors' Lane from Minors' Farm to the Compton Greenfield-Hallen Road road from Ableton Lane near Prospect House to Severn Beach Farm road from Ableton Lane to Vimpenny's Common Red Rhine Road road from Ableton Lane near Stowick Farm towards Vimpenny's Common road from Ableton Lane via Stowick Farm to the road running from Crooks Marsh to Severn Beach road from Minors' Lane between Minors' Farm and Red Rhine on the same side of the road as Minors' Farm road from Washingpool Lane between Severn Road and Crooks Marsh to Worthy Farm road from Severn Road via Barlaam's Gout to Rodborn Farm road from Severn Road to Elmgrove Farm road to Moor House from the Railway road from Stone's Cottages to the Railway road from Washingpool Lane to West House Farm road from Cribbs Causeway at King's Heath Moorhouse Lane (part under Great Western Railway).

Parts of the following streets over Great Western Railway :—

Passage Road Henbury Station Road Ison Hill Hallen Fishpool Hill Charlton Road Charlton Common.

Railways :—

Level Crossing (Great Western Railway) Severn Beach.

THE THIRD SCHEDULE.

Area of Supply under Barton Regis Electric Lighting Order 1902.

The parish of Henbury in the rural district of Thornbury and the parishes of Filton Stoke Gifford and Winterbourne in the rural district of Chipping Sodbury all in the county of Gloucester.

THE FOURTH SCHEDULE.

Maximum Prices.

In this Schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

Section 1.

Where the Corporation charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter :—

(*a*) In respect of the quarters ending thirty-first March and thirty-first December—

For any amount up to fifteen units eight shillings and nine pence and for each unit over fifteen units seven pence;

(*b*) In respect of the quarters ending thirtieth June and thirtieth September—

For any amount up to ten units five shillings and ten pence and for each unit over ten units seven pence.

Section 2.

Where the Corporation charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken

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to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Corporation under the regulations of the Electricity Commissioners.

THE FIFTH SCHEDULE.

Lands for Enlargement of Avon View Cemetery.

Lands comprising the enclosure numbered 2861 on the $\frac{1}{2500}$ Ordnance map (edition of 1918) Gloucestershire sheet LXXII. 14 and so much of the enclosure numbered 2860 on the said Ordnance map as is bounded on the east by the said enclosure numbered 2861 on the south by the northern boundary of the enclosure numbered 3025 on the said Ordnance map on the north by an imaginary straight line extending in a westerly or south-westerly direction for a distance of 350 feet or thereabouts from a point in the western boundary of the said enclosure numbered 2861 205 feet or thereabouts measured in a northerly direction from the southernmost point of that enclosure to a point 210 feet or thereabouts measured in a northerly direction from the north-western corner of the said enclosure numbered 3025 and on the west by an imaginary straight line extending from the said north-western corner to the western extremity of the northern boundary hereinbefore described of the said lands.

THE SIXTH SCHEDULE.

Properties in respect of which easements may be compulsorily acquired.

Work.	Area.	No. on Deposited Plans.
Works Nos. 3 4 5 and 6	Urban district of Portishead	1 to 33 (inclusive).
Works Nos. 3 4 5 and 6	City of Bristol - - -	34 and 35.

THE SEVENTH SCHEDULE.

PROPERTIES OF WHICH PARTS ONLY MAY BE ACQUIRED.

Area.	No. on deposited plans.
City of Bristol - - - -	47 and 48.

THE EIGHTH SCHEDULE.

AREAS ADDED TO THE EXISTING CITY

PART 1.

Note.—In the following description the enclosures referred to are those shown on the $\frac{1}{2500}$ Ordnance maps (edition of 1915) Gloucestershire sheet LXXI. 3 and (edition of 1916) Gloucestershire sheet LXXI. 7 or one of those maps and thereon described by the numbers respectively referred to in this description.

(*a*) So much of the parish of Henbury in the rural district of Thornbury in the county of Gloucester as is contained within a line or imaginary line drawn from a point in the boundary between the existing city and the said parish and rural district at the north-eastern corner of the enclosure numbered 1939 coinciding with the western side of Henbury Road thence proceeding in a westerly direction along the northern boundaries of the enclosures numbered 1939 and 1942 to the eastern boundary of the enclosure numbered 1832 thence in a northerly north-westerly and south-westerly direction along the eastern north-eastern and north-western boundaries of the said enclosure numbered 1832 and the north-western boundary of the enclosure numbered 1840 thence in a westerly direction along the southern boundaries of the enclosures numbered 1843 1841 and 1845 thence in a north-easterly and north-westerly direction along the south-eastern and north-eastern boundaries of the enclosure numbered 1846 to the north-easternmost corner of that enclosure thence for a distance of twenty-eight feet or thereabouts in a north-westerly direction along part of the south-western boundary of the enclosure numbered 1838 thence for a distance of thirty-five feet or thereabouts in a north-easterly direction along part of the north-western boundary of that enclosure thence for a distance of twelve feet or thereabouts in a north-westerly direction along part of the south-western boundary of that enclosure thence in a north-easterly direction to the north-eastern boundary

A.D. 1926. of that enclosure thence in a north-westerly direction along the said north-eastern boundary and along the north-eastern boundary of the enclosure numbered 1848 thence in a westerly and northerly direction along the northern and eastern boundaries of the said enclosure numbered 1848 to the south-eastern side of the road (being the enclosure numbered 1856a) leading from Henbury to Kings Weston thence along that road to the north-westernmost corner of the enclosure numbered 1929 thence in a southerly and south-westerly direction along the western and north-western boundaries of the last-mentioned enclosure to the northern boundary of the enclosure numbered 1927 thence in an easterly direction along the last-mentioned boundary and in a southerly direction along the eastern boundaries of the said enclosure numbered 1927 and of the enclosures respectively numbered 1974 and 1961 thence in a south-easterly and south-westerly direction along the north-eastern and south-eastern boundaries of the enclosure numbered 1959 thence in a south-easterly and easterly direction along the north-eastern and northern boundaries of the enclosures respectively numbered 1951 1950 1981 1984 and 1985 thence to the existing boundary of the city in the centre of the stream known as The Hen opposite the intersection with the said stream of the northern boundary of the said enclosure numbered 1985 and thence in a northerly and easterly direction along the said existing boundary of the city to the point of commencement hereinbefore described of the said line or imaginary line.

(*b*) So much of the said parish of Henbury as is contained within a line or imaginary line drawn from a point in the existing boundary between the city and the said parish at the centre of the bridge carrying the road leading from Shirehampton to Coombe Dingle over the stream known as The Trym thence in a westerly direction along the northern side of the said road to a point therein north of and immediately opposite the north-eastern corner of the enclosure numbered 730 thence in a southerly direction to the existing boundary of the city at the north-eastern corner of the last-mentioned enclosure and thence in an easterly south-easterly and northerly direction along the said existing boundary to the point of commencement hereinbefore described of the said line or imaginary line.

Part 2.

So much of the parish and urban district of Portishead in the county of Somerset as is contained within a line or imaginary line drawn from a point in the southern side of Pier Road at the junction therewith of the eastern side of the footpath leading from Burlington Road to Pier Road thence in a westerly direction across the northern end of the said footpath and along the southern

side of Pier Road to the junction of the road known as Leigh View Road with Pier Road thence in a south-westerly direction along the eastern side of Leigh View Road to the junction thereof with South Road thence in a south-easterly direction along the north-eastern side of South Road for a distance of 125 feet or thereabouts thence along the northern boundary of the footpath leading from South Road to Burlington Road thence in a straight line in a south-easterly direction crossing the Portishead Branch of the Great Western Railway at or near Portishead Station to the existing boundary between the existing city and the said parish and urban district thence in a north-easterly direction along that boundary to a point therein one hundred and thirty-five feet or thereabouts measured in a south-easterly direction from the south-eastern corner of the enclosure numbered 55 on the $\frac{1}{2500}$ Ordnance map (edition of 1915) Somerset sheet 11–6 thence in a north-westerly direction to a point in the eastern side of the first mentioned footpath fourteen feet or thereabouts measured in a south-easterly direction from the said south-eastern corner of the said enclosure and thence in a north-easterly direction along the said eastern side of the said footpath to the point of commencement hereinbefore described of the said line or imaginary line. A.D. 1926.

THE NINTH SCHEDULE.

Referred to in the Section of the foregoing Act of which the Marginal Note is "Power to use one Form of Mortgage for all Purposes."

Form of Mortgage.

City of Bristol.

By virtue of the Bristol Corporation Act 1926 and of other their powers in that behalf them enabling the lord mayor aldermen and burgesses of the city of Bristol (hereinafter referred to as "the Corporation") in consideration of the sum of pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the city by hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the funds rates and revenues of the Corporation as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said funds and revenues To hold unto the mortgagee [his] executors administrators and assigns

A.D. 1926. from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of nineteen hundred and until payment of the principal sum such interest to be paid half-yearly on the day of and the day of in each year And it is hereby agreed that the principal sum shall be repaid at the in the said city [(subject as hereinafter provided) on the day of nineteen hundred and or (if not repaid on that date) at any time thereafter on the expiration of six calendar months' notice in writing by the Corporation to the mortgagee or by the mortgagee to the Corporation] by [ ]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the town clerk of the city for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this day of nineteen hundred and

The Endorsement within referred to.

The within-named consenting the within-mentioned time for repayment of the within-mentioned principal sum of is hereby extended to the day of nineteen hundred and [and the interest to be paid thereon on and from the day of nineteen hundred and is hereby declared to be at the rate of per centum per annum.]

Dated this day of nineteen hundred and

Form of Transfer of Mortgage. A.D. 1926.

I [the within-named]
[of]
in consideration of the sum of
pounds paid to me by
of
(hereinafter referred to as "the transferee") do hereby transfer to the transferee [his] executors administrators and assigns [the within-written security] [the mortgage number
of the funds rates and revenues of the lord mayor aldermen and burgesses of the city of Bristol bearing date the
day of] and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this day of
nineteen hundred and .

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